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JD1,MJ CIV PP,NDISPO,TERMED

**U.S. District Court - District of Colorado**  
**District of Colorado (Denver)**  
**CIVIL DOCKET FOR CASE #: 1:19-cv-01749-RMR-SKC**

Titan Manufacturing Solutions, Inc. v. National Cost, Inc.  
Assigned to: Judge Regina M. Rodriguez  
Referred to: Magistrate Judge S. Kato zzz\_Crews - MJ  
Case in other court: Arapahoe County District Court,  
2019CV31353  
Tenth Circuit, 23-01333  
Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 06/17/2019  
Date Terminated: 05/05/2022  
Jury Demand: None  
Nature of Suit: 190 Contract: Other  
Jurisdiction: Diversity

**Plaintiff**

**Titan Manufacturing Solutions, Inc.**  
*a Nevada corporation*

represented by **Ashley Calhoun Seeley**  
Seeley LLC  
201 Columbine Street  
Suite 150  
Denver, CO 80206  
720-272-1799  
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*TERMINATED: 05/28/2020*

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*TERMINATED: 09/14/2020*

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*TERMINATED: 09/14/2020*

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*ATTORNEY TO BE NOTICED*

**Laurin D. Quiat**  
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*ATTORNEY TO BE NOTICED*

V.

**Defendant**

**National Cost, Inc.**  
*a Florida corporation*  
*doing business as*  
National Tax Group

represented by **Maral Shoaiei**  
Dorsey & Whitney LLP  
1400 Wewatta Street  
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*ATTORNEY TO BE NOTICED*

**Gregory Scot Tamkin**  
Dorsey & Whitney LLP  
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Email: tamkin.greg@dorsey.com  
*ATTORNEY TO BE NOTICED*

**Defendant**

**Lee Ferry**  
*an individual*  
*TERMINATED: 03/13/2020*

represented by **Maral Shoaiei**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Gregory Scot Tamkin**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Defendant**

**Stephanie Reynoso**  
*an individual*  
*TERMINATED: 03/13/2020*

represented by **Maral Shoaiei**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Gregory Scot Tamkin**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Counter Claimant**

**National Cost, Inc.**  
*a Florida corporation*

represented by **Maral Shoaie**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Gregory Scot Tamkin**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

V.

**Counter Defendant**

**Titan Manufacturing Solutions, Inc.**  
*a Nevada corporation*

represented by **Ashley Calhoun Seeley**  
(See above for address)  
*TERMINATED: 05/28/2020*

**Christopher John Eby**  
(See above for address)  
*TERMINATED: 09/14/2020*

**Colin Louis Barnacle**  
(See above for address)  
*TERMINATED: 09/14/2020*

**Jacob A. Bruner**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Laurin D. Quiat**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Counter Claimant**

**National Cost, Inc.**  
*a Florida corporation*

represented by **Maral Shoaie**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Gregory Scot Tamkin**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

V.

**Counter Defendant**

**Titan Manufacturing Solutions, Inc.**  
*a Nevada corporation*

represented by **Ashley Calhoun Seeley**  
(See above for address)  
*TERMINATED: 05/28/2020*

**Christopher John Eby**  
(See above for address)  
*TERMINATED: 09/14/2020*

**Colin Louis Barnacle**  
(See above for address)  
*TERMINATED: 09/14/2020*

**Jacob A. Bruner**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Laurin D. Quiat**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

| Date Filed | #                  | Docket Text                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 06/17/2019 | <a href="#">1</a>  | NOTICE OF REMOVAL by Stephanie Reynoso, Lee Ferry, National Cost, Inc., d/b/a National Tax Group from Arapahoe County District Court, Case Number 2019CV31353. (Filing fee \$ 400, Receipt Number 1082-6746783), filed by Stephanie Reynoso, Lee Ferry, National Cost, Inc., d/b/a National Tax Group. (Attachments: # <a href="#">1</a> Civil Cover Sheet, # <a href="#">2</a> Attachment A to Civil Cover Sheet, # <a href="#">3</a> Exhibit A - State Court Summons, Civil Cover Sheet, and Complaint)(Tamkin, Gregory) (Entered: 06/17/2019)                                                                                                               |
| 06/17/2019 | 2                  | Administrative Notice: Notice to filer of non-compliance with Notice of Removal case opening procedures. It is the responsibility of the attorney or pro se party removing the case to follow Local Rule D.C.COLO.LCivR 81.1, and 28 U.S.C. § 1446(a). <b>Each of the state court documents shall be individual PDFs.</b> See Appendix B Notice of Removal, in the User Guide - Attorney Case Opening Procedures document. (Text Only Entry) (cmadr, ) (Entered: 06/18/2019)                                                                                                                                                                                   |
| 06/17/2019 | 3                  | FIRST AND FINAL NOTICE TO ALL ATTORNEY(S) AND UNREPRESENTED PARTIES IN REMOVED, TRANSFERRED, OR OTHER CASES. To receive any further notice in a case removed or transferred to this court, or special matters including discovery disputes, bankruptcy appeals, or withdrawals of reference, Multi-district litigation (MDL), etc., all attorneys and unrepresented parties must enter an appearance under D.C.COLO.LAttyR 5(a). An attorney must be an active member of this court's bar and be in good standing in accordance with D.C.COLO.LAttyR 3. A waiver of the fee for bar admission may apply in limited situations. (cmadr, ) (Entered: 06/18/2019) |
| 06/17/2019 | 4                  | Case assigned to Magistrate Judge S. Kato Crews. Text Only Entry. (cmadr, ) (Entered: 06/18/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 06/17/2019 | <a href="#">5</a>  | Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (cmadr, ) (Entered: 06/18/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 06/17/2019 | <a href="#">14</a> | Verified COMPLAINT against Lee Ferry, National Cost, Inc., Stephanie Reynoso, filed by Titan Manufacturing Solutions, Inc..(cmadr, ) (Entered: 06/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/18/2019 | 6                  | ORDER <i>Setting Rule 16(b) Scheduling Conference</i> . The Scheduling Conference is set for 8/13/2019 at 10:30 AM in Courtroom C204 before Magistrate Judge S. Kato Crews. The parties shall file their proposed scheduling order, and email a copy in Word format to Crews_Chambers@cod.uscourts.gov, on or before 8/6/2019. The Magistrate Judge Consent Form (ECF. # <a href="#">5</a> ) is due 8/6/2019. SO ORDERED by Magistrate Judge S. Kato Crews on 6/18/2019. Text Only Entry (skclc2) (Entered: 06/18/2019)                                                                                                                                        |
| 06/18/2019 | <a href="#">7</a>  | NOTICE of Entry of Appearance by Colin Louis Barnacle on behalf of Titan Manufacturing Solutions, Inc. Attorney Colin Louis Barnacle added to party Titan Manufacturing Solutions, Inc.(pty:pla) (Barnacle, Colin) (Entered: 06/18/2019)                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|------------|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 06/18/2019 | <a href="#">8</a>  | NOTICE of Entry of Appearance by Christopher John Eby on behalf of Titan Manufacturing Solutions, Inc. Attorney Christopher John Eby added to party Titan Manufacturing Solutions, Inc.(pty:pla) (Eby, Christopher) (Entered: 06/18/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/18/2019 | <a href="#">9</a>  | NOTICE of Entry of Appearance by Ashley Elizabeth Calhoun on behalf of Titan Manufacturing Solutions, Inc. Attorney Ashley Elizabeth Calhoun added to party Titan Manufacturing Solutions, Inc.(pty:pla) (Calhoun, Ashley) (Entered: 06/18/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 06/18/2019 | <a href="#">10</a> | NOTICE re <a href="#">1</a> Notice of Removal, <i>Filing Corrected Exhibits and Submission of Supplemental Civil Cover Sheet</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso (Attachments: # <a href="#">1</a> Exhibit A-1, L. Ferry Summons, # <a href="#">2</a> Exhibit A-2, National Cost, Inc. Summons, # <a href="#">3</a> Exhibit A-3, S. Reynoso Summons, # <a href="#">4</a> Exhibit A-4, Civil Cover Sheet, # <a href="#">5</a> Exhibit A-5, Verified Complaint, # <a href="#">6</a> Exhibit A-6, Proof of Service on National Cost, Inc., # <a href="#">7</a> Exhibit A-7, Proof of Service on L. Ferry, # <a href="#">8</a> Exhibit A-8, Proof of Service on S. Reynoso, # <a href="#">9</a> Exhibit B, Supplemental Civil Cover Sheet)(Tamkin, Gregory) (Entered: 06/18/2019) |
| 06/19/2019 | <a href="#">11</a> | CONSENT to Jurisdiction of Magistrate Judge by Plaintiff Titan Manufacturing Solutions, Inc. All parties do not consent.. (Eby, Christopher) (Entered: 06/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 06/19/2019 | <a href="#">12</a> | NOTICE of Filing State Court Register of Actions and Pending State Court Motions by Plaintiff Titan Manufacturing Solutions, Inc. (Attachments: # <a href="#">1</a> Exhibit A - State Court Register of Actions, # <a href="#">2</a> Exhibit B - State Court Motion for Temporary Restraining Order and Preliminary Injunction with Exhibits, # <a href="#">3</a> Exhibit C - State Court Proposed Order re Motion for Temporary Restraining Order and Preliminary Injunction)(Eby, Christopher) (Entered: 06/19/2019)                                                                                                                                                                                                                                                                                        |
| 06/19/2019 | 13                 | CASE REASSIGNED pursuant to <a href="#">11</a> Consent/Non-Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is randomly reassigned to Judge Robert E. Blackburn. All future pleadings should be designated as 19-cv-01749-REB. (Text Only Entry) (jgonz, ) (Entered: 06/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 06/19/2019 | <a href="#">15</a> | MEMORANDUM RETURNING CASE by Senior Judge Blackburn. This case is randomly reassigned to Judge William J. Martinez. All future pleadings should be designated as 19-cv-01749-WJM. (athom, ) (Entered: 06/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 06/19/2019 | <a href="#">16</a> | MOTION for Temporary Restraining Order and Preliminary Injunction, by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(angar, ) (Entered: 06/20/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 06/20/2019 | <a href="#">17</a> | Stipulated MOTION for Temporary Restraining Order by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 06/20/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/20/2019 | 18                 | ORDER REFERRING CASE to Magistrate Judge S. Kato Crews. Magistrate Judge Crews, or such other Magistrate Judge who may in the future be reassigned this case, is designated to conduct NDISPO proceedings pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed.R.Civ.P. 72(a) and (b). Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the Magistrate Judge or on the request of the parties by motion, the court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. SO ORDERED by Judge William J. Martinez on 6/20/2019. Text Only Entry (wjmssec, ) (Entered: 06/20/2019)                                                     |
| 06/20/2019 | 19                 | <b>ORDER: Counsel for the parties and all counsel who may later enter an appearance shall review and familiarize themselves with the undersigned's Revised Practice Standards (as most recently revised effective December 1, 2018 and as they may be amended from time to time), which may be downloaded <a href="#">here</a>.</b> SO ORDERED by                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

|            |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|------------|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            |                    | Judge William J. Martinez on 6/ 20/2019. Text Only Entry (wjmsecc, ) (Entered: 06/20/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/24/2019 | 20                 | ORDER: Before the Court is Plaintiff's Motion for Temporary Restraining Order and Preliminary Injunction ("TRO/PI Motion") <a href="#">16</a> and the parties' Stipulated Temporary Restraining Order ("Stipulated TRO") <a href="#">17</a> . The appearance of the opposing party and the filing of the Stipulated TRO demonstrate that there is no need for the Court to issue relief "before the adverse party can be heard in opposition," Fed. R. Civ. P. 65(b)(1)(A), and so the TRO portion of the TRO/PI Motion is DENIED AS MOOT. Moreover, the TRO/PI Motion exceeds the page limits of WJM Revised Practice Standard III.C.1, and it argues for relief under Colorado standards, not federal standards. Colorado's standard for granting a preliminary injunction is not entirely congruent with the federal standard, and therefore the TRO/PI Motion does not properly frame the issues. The TRO/PI Motion is accordingly DENIED WITHOUT PREJUDICE to an amended preliminary injunction motion that complies with the undersigned's practice standards and presents an argument under the federal standard for preliminary injunctive relief. As for the Stipulated TRO, the parties are free to govern their conduct under this stipulation but the Court will not adopt it as an order at this time. The Stipulated TRO states that it will remain in place through the conclusion of preliminary injunction proceedings, but, as a result of this order, there are no pending preliminary injunction proceedings. If Plaintiff files an amended preliminary injunction motion, the Court will then consider whether to adopt the Stipulated TRO as an order of Court. SO ORDERED by Judge William J. Martinez on 06/24/2019. Text Only Entry (wjmlc1) (Entered: 06/24/2019) |
| 06/28/2019 | <a href="#">21</a> | Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond <i>to Complaint</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Tamkin, Gregory) (Entered: 06/28/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/28/2019 | <a href="#">22</a> | Amended MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Verified Complaint, # <a href="#">2</a> Exhibit B - License Agreement, # <a href="#">3</a> Exhibit C - Terms of Service, # <a href="#">4</a> Exhibit D - Stipulated Restraining Order)(Eby, Christopher) (Entered: 06/28/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 06/28/2019 | 27                 | ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES:re: <a href="#">22</a> Amended MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> filed by attorney Christopher John Eby. Attorney or pro se has used an incorrect signature format in violation of D.C.COLO.LCivR 5.1(a) and 4.3(a) of the Electronic Case Filing Procedures (Civil cases). <b>DO NOT REFILE THE DOCUMENT.</b> In the future, the filer must affix an electronic s/signature and s/ followed by a typed, not an inked, signature to all future documents.(Text Only Entry) (angar, ) (Entered: 07/03/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 07/01/2019 | 23                 | MEMORANDUM regarding <a href="#">21</a> Unopposed MOTION for Extension of Time to File Answer or Otherwise Respond <i>to Complaint</i> filed by Stephanie Reynoso, Lee Ferry, National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 7/1/2019. Text Only Entry (wjmsecc, ) (Entered: 07/01/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 07/01/2019 | 24                 | ORDER: Before the Court is Plaintiff's Amended Motion for Temporary Restraining Order and Preliminary Injunction ("Amended TRO/PI Motion") <a href="#">22</a> . As with the original TRO/PI Motion, the circumstances of this case show that there is no need for the Court to issue relief "before the adverse party can be heard in opposition." Fed. R. Civ. P. 65(b)(1) (A). Accordingly, the Amended TRO/PI Motion is DENIED to the extent it seeks <i>ex parte</i> relief. The Court will address the Stipulated Temporary Restraining Order <a href="#">17</a> shortly. As for the PI portion of the Amended TRO/PI Motion, Defendants shall respond on or before <b>July 8, 2019</b> , and Plaintiff may reply on or before <b>July 12, 2018</b> . After receiving Plaintiff's reply, the Court will determine whether an evidentiary hearing is necessary. SO                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |



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|------------|--------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            |                    | ORDERED by Judge William J. Martinez on 07/01/2019. Text Only Entry(wjmlc1) (Entered: 07/01/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 07/01/2019 | <a href="#">25</a> | STIPULATED INTERIM PRELIMINARY INJUNCTION (granting <a href="#">17</a> Stipulated Temporary Restraining Order, as modified by the Court), by Judge William J. Martinez on 07/01/2019. (wjmlc1) (Entered: 07/01/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/02/2019 | <a href="#">26</a> | ORDER GRANTING <a href="#">21</a> <i>Motion for Extension of Time to Answer or Otherwise Respond.</i> For good cause shown, the Motion is GRANTED. Accordingly, IT IS ORDERED that all Defendants shall have up to and including 7/16/2019 to respond to the Complaint. SO ORDERED by Magistrate Judge S. Kato Crews on 7/2/2019. Text Only Entry (skclc2) (Entered: 07/02/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 07/08/2019 | <a href="#">28</a> | RESPONSE to <a href="#">22</a> Amended MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> filed by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Attachments: # <a href="#">1</a> Exhibit 1 - Declaration of L Ferry, # <a href="#">2</a> Exhibit 2 - June 27 2018 Email, # <a href="#">3</a> Exhibit 3 - Titan Armor Training & Support, # <a href="#">4</a> Exhibit 4 - Titan Exemplar Report, # <a href="#">5</a> Exhibit 5 - Email correspondence, # <a href="#">6</a> Exhibit 6 - Text messages, # <a href="#">7</a> Exhibit 7 0 Competitor Report, # <a href="#">8</a> Exhibit 8 - Declaration of S Leigh, # <a href="#">9</a> Exhibit 9 - Aug 16 2018 Email, # <a href="#">10</a> Exhibit 10 - About Titan Armor, # <a href="#">11</a> Exhibit 11 - AIA Article, # <a href="#">12</a> Exhibit 12 - Excerpts from 2018 Labor Detail Rpt)(Tamkin, Gregory) (Entered: 07/08/2019) |
| 07/12/2019 | <a href="#">29</a> | NOTICE of Entry of Appearance by Maral Shoaie on behalf of Lee Ferry, National Cost, Inc., Stephanie Reynoso Attorney Maral Shoaie added to party Lee Ferry(pty:dft), Attorney Maral Shoaie added to party National Cost, Inc. (pty:dft), Attorney Maral Shoaie added to party Stephanie Reynoso(pty:dft) (Shoaie, Maral) (Entered: 07/12/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 07/12/2019 | <a href="#">30</a> | REPLY to Response to <a href="#">22</a> Amended MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 07/12/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 07/15/2019 | <a href="#">31</a> | Partial MOTION to Dismiss by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Tamkin, Gregory) (Entered: 07/15/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 07/16/2019 | <a href="#">32</a> | ORDER denying <a href="#">22</a> Plaintiff's Amended Motion for Temporary Restraining Order and Preliminary Injunction, by Judge William J. Martinez on 07/16/2019. (wjmlc1) (Entered: 07/16/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 08/05/2019 | <a href="#">33</a> | RESPONSE to <a href="#">31</a> Partial MOTION to Dismiss filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Conferral Correspondence)(Eby, Christopher) (Entered: 08/05/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 08/06/2019 | <a href="#">34</a> | Proposed Scheduling Order by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 08/06/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 08/13/2019 | <a href="#">35</a> | COURTROOM MINUTES for Scheduling Conference held before Magistrate Judge S. Kato Crews on 8/13/2019. Designation of Affirmative Experts due 2/3/2020. Discovery due by 4/13/2020. Dispositive Motions due by 5/13/2020. Designation of Rebuttal Experts due 3/4/2020. Join Parties due 11/13/2019. Status Report due by 10/28/2019. Final Pretrial Conference set for 7/20/2020 10:00 AM in Courtroom C204 before Magistrate Judge Kato S. Crews. (Total time: 11 minutes, Hearing time: 10:28 a.m.-10:39 a.m.)<br><br><b>APPEARANCES:</b> Christopher Eby on behalf of the plaintiff, Gregory Tamkin and Maral Shoaie on behalf of the defendant. FTR: C204. (cthom, ) (Entered: 08/13/2019)                                                                                                                                                                                                                                |
| 08/13/2019 | <a href="#">36</a> | SCHEDULING ORDER entered by Magistrate Judge S. Kato Crews on 8/13/2019. (cpear) (Entered: 08/13/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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| 08/19/2019 | <a href="#">37</a> | REPLY to Response to <a href="#">31</a> Partial MOTION to Dismiss filed by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Tamkin, Gregory) (Entered: 08/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 09/10/2019 | <a href="#">38</a> | Renewed MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Declaration of Brian Lefever, # <a href="#">2</a> Exhibit B - Verified Complaint, # <a href="#">3</a> Exhibit C - Licensing Agreement, # <a href="#">4</a> Exhibit D - User Terms of Service, # <a href="#">5</a> Exhibit E - Declaration of Steve Leigh, # <a href="#">6</a> Exhibit F - Screenshots Dated 2/13/2019, # <a href="#">7</a> Exhibit G Screenshots Dated 3/19/2019, # <a href="#">8</a> Exhibit H - Screenshots Dated 3/22/2019, # <a href="#">9</a> Exhibit I - Screenshots Dated 4/19/2019, # <a href="#">10</a> Exhibit J - Screenshots Dated 4/26/2019, # <a href="#">11</a> Exhibit K - National Tax Database, # <a href="#">12</a> Exhibit L - Declaration of Lee Ferry, # <a href="#">13</a> Exhibit M - Letter from Steve Leigh Dated 5/19/2019, # <a href="#">14</a> Proposed Order (PDF Only))(Eby, Christopher) Modified on 3/18/2020 to apply restrictions pursuant to order # <a href="#">84</a> (jgonz, ). (Entered: 09/10/2019) |
| 09/12/2019 | 39                 | ORDER: Before the Court is Plaintiff's Renewed Motion for Temporary Restraining Order and Preliminary Injunction <a href="#">38</a> . The motion does not explain why relief should be granted "before the adverse party can be heard in opposition." Fed. R. Civ. P. 65(b)(1)(A). Accordingly, the TRO portion of the motion is DENIED. As for the preliminary injunction portion, Defendants shall respond on or before <b>September 19, 2019</b> , and Plaintiff may reply on or before <b>September 24, 2019</b> . After receiving Plaintiff's reply, the Court will determine whether an evidentiary hearing is necessary. SO ORDERED by Judge William J. Martinez on 09/12/2019. Text Only Entry (wjmlc1) (Entered: 09/12/2019)                                                                                                                                                                                                                                                                                                                                                                                                         |
| 09/13/2019 | <a href="#">40</a> | MOTION for Extension of Time to File Response/Reply as to <a href="#">38</a> Renewed MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Attachments: # <a href="#">1</a> Exhibit A - September 5, 2019 Email)(Tamkin, Gregory) (Entered: 09/13/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 09/16/2019 | 41                 | ORDER: This matter is before the Court on Defendants' Motion for Extension of Time to Respond to Plaintiff's Renewed Motion for Temporary Restraining Order and Preliminary Injunction <a href="#">40</a> . Plaintiff is DIRECTED to respond no later than <b>tomorrow, September 17, 2019, by 5:00 PM</b> . No reply from Defendants will be accepted without leave or further order of Court. SO ORDERED by Judge William J. Martinez on 09/16/2019. Text Only Entry (wjmlc1) (Entered: 09/16/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 09/17/2019 | <a href="#">42</a> | RESPONSE to <a href="#">40</a> MOTION for Extension of Time to File Response/Reply as to <a href="#">38</a> Renewed MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 09/17/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 09/17/2019 | 43                 | ORDER: This matter is before the Court on Defendants' Motion for Extension of Time to Respond to Plaintiff's Renewed Motion for Temporary Restraining Order and Preliminary Injunction <a href="#">40</a> . The motion is GRANTED for good cause shown. Defendants may file their response brief up to seven calendar days after deposing Mr. Lefever, but in no case later than October 18, 2019. Plaintiff shall cooperate in good faith to make Mr. Lefever available. Plaintiff shall file its reply no later than seven calendar days after Defendants file their response. The Court will then determine the need for an evidentiary hearing. SO ORDERED by Judge William J. Martinez on 09/17/2019. Text Only Entry (wjmlc1) (Entered: 09/17/2019)                                                                                                                                                                                                                                                                                                                                                                                     |
| 09/26/2019 | <a href="#">44</a> | Joint MOTION for Protective Order ( <i>Unopposed</i> ) by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Protective Order)(Eby, Christopher) (Entered: 09/26/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 09/26/2019 | 45                 | MEMORANDUM regarding <a href="#">44</a> Joint MOTION for Protective Order ( <i>Unopposed</i> ) filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |



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|            |                    | Crews by Judge William J. Martinez on 9/26/2019. Text Only Entry (wjmsec, ) (Entered: 09/26/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 09/30/2019 | 46                 | ORDER granting <a href="#">44</a> Motion for Protective Order by Magistrate Judge S. Kato Crews on 9/30/2019. Text Only Entry(jgonz, ) (Entered: 10/01/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 09/30/2019 | <a href="#">47</a> | PROTECTIVE ORDER by Magistrate Judge S. Kato Crews on 9/30/2019. (jgonz, ) (Entered: 10/01/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 10/03/2019 | <a href="#">48</a> | RESTRICTED DOCUMENT - Level 1: by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso.. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6, # <a href="#">7</a> Exhibit 7, # <a href="#">8</a> Exhibit 8, # <a href="#">9</a> Exhibit 9, # <a href="#">10</a> Exhibit 10, # <a href="#">11</a> Exhibit 11)(Tamkin, Gregory) (Entered: 10/03/2019)                                                                                                                                                                                                                                                         |
| 10/03/2019 | 50                 | RESPONSE to Plaintiff's <a href="#">38</a> Renewed MOTION for Temporary Restraining Order <i>and Preliminary Injunction</i> filed by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Public Entry to <a href="#">48</a> Restricted Document) (angar, ) (Entered: 10/07/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 10/04/2019 | <a href="#">49</a> | MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Eby, Christopher) (Entered: 10/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 10/09/2019 | 51                 | MEMORANDUM regarding <a href="#">49</a> MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 10/9/2019. Text Only Entry (wjmsec, ) (Entered: 10/09/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 10/10/2019 | <a href="#">52</a> | <b>WITHDRAWN</b> RESTRICTED DOCUMENT - Level 2: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit Exhibit A- Declaration of Brian Lefever, # <a href="#">2</a> Exhibit Exhibit B- Selections from Deposition of Brian Lefever, # <a href="#">3</a> Exhibit Exhibit C- User Terms of Service, # <a href="#">4</a> Exhibit Exhibit D- Licensing Agreement, # <a href="#">5</a> Exhibit Exhibit E- Email Dated 2/13/19, # <a href="#">6</a> Exhibit Exhibit F- Email Dated 2/13/19, # <a href="#">7</a> Exhibit Exhibit G- Screenshots Dated 2/13/19, # <a href="#">8</a> Exhibit Exhibit H- National Tax Database)(Eby, Christopher) Modified on 10/25/2019 to withdraw pursuant to 62 Order (angar, ). (Entered: 10/10/2019) |
| 10/10/2019 | <a href="#">53</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A- Declaration of B. Lefever, # <a href="#">2</a> Exhibit B- Deposition of B. Lefever, # <a href="#">3</a> Exhibit C- User Terms of Service, # <a href="#">4</a> Exhibit D- Licensing Agreement, # <a href="#">5</a> Exhibit E- Email 2/13/2019, # <a href="#">6</a> Exhibit F- Email 2/13/2019, # <a href="#">7</a> Exhibit G- Screenshots-2/13/2019, # <a href="#">8</a> Exhibit G- National Tax Database)(Eby, Christopher) (Entered: 10/10/2019)                                                                                                                                                                                       |
| 10/10/2019 | 54                 | REPLY in Support of 50 Renewed Motion for Preliminary Injection, by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry to <a href="#">52</a> Restricted Level 1 document - TEXT ONLY ENTRY (angar, ) Modified on 10/11/2019 to add text (angar, ). (Entered: 10/11/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 10/14/2019 | <a href="#">55</a> | RESPONSE to <a href="#">49</a> MOTION for Leave to Restrict <i>Access to Its Renewed Motion for TRO and Select Exhs - Level 1</i> filed by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Attachments: # <a href="#">1</a> Exhibit A - C Eby email re Mot to Restrict)(Shoaei, Maral) (Entered: 10/14/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 10/17/2019 | <a href="#">56</a> | ORDER denying <a href="#">38</a> Plaintiff's Renewed Motion for Temporary Restraining Order and Preliminary Injunction, by Judge William J. Martinez on 10/17/2019. (wjmlc1) (Entered: 10/17/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 10/17/2019 | <a href="#">57</a> | Unopposed MOTION for Leave to Restrict by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Shoaei, Maral) (Entered: 10/17/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

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| 10/21/2019 | 58                 | MEMORANDUM regarding <a href="#">57</a> Unopposed MOTION for Leave to Restrict filed by Stephanie Reynoso, Lee Ferry, National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 10/21/2019. Text Only Entry (wjmsc, ) (Entered: 10/21/2019)                                                                                                                                                                                                                                                                                                                         |
| 10/24/2019 | <a href="#">59</a> | MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Eby, Christopher) (Entered: 10/24/2019)                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 10/24/2019 | <a href="#">60</a> | Unopposed MOTION to Withdraw Document re <a href="#">52</a> Restricted Document - Level 2,, by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Eby, Christopher) (Entered: 10/24/2019)                                                                                                                                                                                                                                                                                                                                                                |
| 10/25/2019 | 61                 | MEMORANDUM regarding <a href="#">59</a> MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 10/25/2019. Text Only Entry (wjmsc, ) (Entered: 10/25/2019)                                                                                                                                                                                                                                                                                                                                                 |
| 10/25/2019 | 62                 | ORDER granting Plaintiff's Unopposed Motion to Withdraw Reply in Support of Renewed Motion for Preliminary Injunction and Exhibits A-H thereto [ECF #52, 52-1 to 52-8] Level 2 <a href="#">60</a> . Plaintiff's Motion to Withdraw is GRANTED for good cause shown. Plaintiff's Reply in Support of Renewed Motion for Preliminary Injunction and its Exhibits (ECF No. 52 and 52-1 to 52-8) are hereby DEEMED WITHDRAWN. SO ORDERED by Judge William J. Martinez on 10/25/2019. Text Only Entry(wjmsc, ) (Entered: 10/25/2019)                                                                                   |
| 10/28/2019 | <a href="#">63</a> | Joint STATUS REPORT by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 10/28/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 10/28/2019 | <a href="#">64</a> | REPLY to Response to <a href="#">49</a> MOTION for Leave to Restrict <i>Access to Plaintiff's Renewed Motion for Temporary Restraining Order and Select Exhibits Thereto [ECF #38, 38-6 to 38-11] - Level 1</i> filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 10/28/2019)                                                                                                                                                                                                                                                                                                  |
| 10/29/2019 | 65                 | ORDER GRANTING <a href="#">57</a> <i>Motion for Leave to Restrict Access to Defendants' Response to Plaintiff's Renewed Motion for Preliminary Injunction</i> . The Court finds the requirements of Local Rule 7.2(c) have been met. Accordingly, IT IS ORDERED that the Clerk of Court shall ensure that Docket Entry Nos. <a href="#">48</a> 48-1, 48-9, and 48-11 retain Level 1 restricted access. All other exhibits attached to Docket Entry No. 48 shall no longer have Restrict Level 1 status. SO ORDERED by Magistrate Judge S. Kato Crews on 10/29/2019. Text Only Entry (sklc2) (Entered: 10/29/2019) |
| 11/14/2019 | <a href="#">66</a> | RESPONSE to <a href="#">59</a> MOTION for Leave to Restrict <i>Access to its Reply in Support of Renewed Motion for Temporary Restraining Order and Select Exhibits Thereto [ECF 53, 53-2, 53-7, 53-8] - Level 1</i> filed by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso. (Shoaei, Maral) (Entered: 11/14/2019)                                                                                                                                                                                                                                                                                 |
| 11/29/2019 | <a href="#">67</a> | REPLY to Response to <a href="#">59</a> MOTION for Leave to Restrict <i>Access to Plaintiff's Reply in Support of Renewed Motion for Preliminary Injunction</i> filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Eby, Christopher) (Entered: 11/29/2019)                                                                                                                                                                                                                                                                                                                                                  |
| 02/03/2020 | <a href="#">68</a> | Joint MOTION for Extension of Time to <i>Designate Affirmative and Rebuttal Experts (Unopposed)</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Eby, Christopher) (Entered: 02/03/2020)                                                                                                                                                                                                                                                                                                                                                        |
| 02/04/2020 | 69                 | MEMORANDUM regarding <a href="#">68</a> Joint MOTION for Extension of Time to <i>Designate Affirmative and Rebuttal Experts (Unopposed)</i> filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 2/4/2020. Text Only Entry (wjmsc, ) (Entered: 02/04/2020)                                                                                                                                                                                                                                                                            |

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| 02/06/2020 | <a href="#">70</a> | ORDER granting unopposed <a href="#">68</a> Motion for Extension of Time to File of Expert Deadlines. The Parties shall designate affirmative experts on or before February 10, 2020 and rebuttal experts on or before March 11, 2020, by Magistrate Judge S. Kato Crews on 2/6/2020.(jgonz, ) (Entered: 02/06/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 02/10/2020 | <a href="#">71</a> | Stipulated MOTION to Amend/Correct/Modify <a href="#">36</a> Scheduling Order by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Eby, Christopher) (Entered: 02/10/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 02/11/2020 | 72                 | MEMORANDUM regarding <a href="#">71</a> Stipulated MOTION to Amend/Correct/Modify <a href="#">36</a> Scheduling Order filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 2/11/2020. Text Only Entry (wjmsec, ) (Entered: 02/11/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 02/26/2020 | <a href="#">73</a> | COUNTERCLAIM against Titan Manufacturing Solutions, Inc., filed by National Cost, Inc..(Tamkin, Gregory) (Entered: 02/26/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 03/02/2020 | <a href="#">74</a> | ORDER granting Defendants' Partial Motion to Dismiss <a href="#">31</a> with prejudice as to the conversion claims and without prejudice as to the civil conspiracy claim, by Judge William J. Martinez on 03/02/2020. (wjmlc1) (Entered: 03/02/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 03/05/2020 | <a href="#">75</a> | NOTICE of Entry of Appearance by Laurin D. Quiat on behalf of Titan Manufacturing Solutions, Inc.Attorney Laurin D. Quiat added to party Titan Manufacturing Solutions, Inc.(pty:pla) (Quiat, Laurin) (Entered: 03/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/05/2020 | <a href="#">76</a> | NOTICE of Entry of Appearance by Jacob A. Bruner on behalf of Titan Manufacturing Solutions, Inc.Attorney Jacob A. Bruner added to party Titan Manufacturing Solutions, Inc.(pty:pla) (Bruner, Jacob) (Entered: 03/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/13/2020 | <a href="#">77</a> | STIPULATION of Dismissal of Party <i>Lee Ferry and Stephanie Reynoso</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 03/13/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 03/13/2020 | 80                 | Party Lee Ferry (an individual) terminated Pursuant to <a href="#">77</a> Stipulation of Dismissal of Party - Text Only Entry (angar, ) (Entered: 03/16/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/16/2020 | <a href="#">78</a> | <b>STRICKEN</b> STIPULATION re 72 Memorandum, <a href="#">36</a> Scheduling Order [ <i>Second</i> ] <i>Motion to Modify Scheduling Order</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) Modified on 3/16/2020 to strike pursuant to 79 Order (angar, ). (Entered: 03/16/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 03/16/2020 | 79                 | ORDER STRIKING <a href="#">78</a> <i>Stipulation re: 72 Memorandum, 36 Scheduling Order</i> . The Parties docketed a "Stipulated [Second] Motion to Modify Scheduling Order" on 3/16/2020, and filed it as a "Stipulation" in the CM/ECF docketing system. The document must be docketed in CM/ECF as a "Motion" before the Court can rule on the requested relief. Therefore, IT IS ORDERED that the Clerk of Court shall STRIKE [# <a href="#">78</a> ], and the Parties are granted leave to refile the document and designate it as a "Motion" in the CM/ECF system.<br><br>Additionally, the Court notes that the parties indicate that the Scheduling Order was previously modified on February 11, 2020. It was not. The Parties prior motion has not been ruled on. Moreover, <b><u>the Final Pretrial Conference is set for July 20, 2020, and the Final Pretrial Order is due July 13, 2020.</u></b> Yet, the Parties request a Discover Cut-off date of August 12, 2020, and do not request the Final Pretrial Conference and related deadlines be reset. The Parties shall address the Final Pretrial Conference and Final Pretrial Order Deadline in any refiled <u>Motion</u> . SO ORDERED by Magistrate Judge S. Kato Crews on 3/16/2020. Text Only Entry (skclc2) (Entered: 03/16/2020) |

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| 03/16/2020 | <a href="#">81</a> | Joint MOTION to Amend/Correct/Modify <i>Scheduling Order</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 03/16/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 03/16/2020 | <a href="#">83</a> | ORDER granting <a href="#">59</a> Motion for Leave to Restrict by Magistrate Judge S. Kato Crews on 3/16/2020.(jgonz, ) (Entered: 03/17/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/16/2020 | <a href="#">84</a> | ORDER granting <a href="#">49</a> Motion for Leave to Restrict by Magistrate Judge S. Kato Crews on 3/16/2020.(jgonz, ) (Entered: 03/17/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/17/2020 | 82                 | MEMORANDUM regarding <a href="#">81</a> Joint MOTION to Amend/Correct/Modify <i>Scheduling Order</i> filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 3/17/2020. Text Only Entry (wjmssec, ) (Entered: 03/17/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 03/17/2020 | 85                 | ORDER DENYING AS MOOT <a href="#">71</a> <i>Motion to Amend/Correct/Modify Scheduling Order</i> ; and GRANTING <a href="#">81</a> <i>Motion to Amend/Correct/Modify Scheduling Order</i> . For good cause shown, the Motion to Modify Scheduling Order [# <a href="#">81</a> ] is GRANTED. Accordingly, IT IS ORDERED that the Scheduling Order is modified as follows: <b><u>Affirmative Expert Designation Deadline</u></b> is 6/12/2020; <b><u>Rebuttal Expert Designation Deadline</u></b> is 7/10/2020; <b><u>Written Discovery Service Deadline</u></b> is 7/13/2020; <b><u>Discovery Cut-Off</u></b> is 8/12/2020; <b><u>Dispositive Motions Deadline</u></b> is 9/15/2020; <b><u>Proposed Final Pretrial Order Deadline</u></b> is 10/13/2020; and a <b><u>Telephonic Final Pretrial Conference</u></b> is set for 10/20/2020 at 10:00 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. The Parties shall appear by initiating a joint conference call amongst themselves prior to calling Chambers (303.335.2124) at the time of the Conference. IT IS FURTHER ORDERED that the [# <a href="#">71</a> ] Motion to Modify Scheduling Order is DENIED AS MOOT. SO ORDERED by Magistrate Judge S. Kato Crews on 3/17/2020. Text Only Entry (skclc2) (Entered: 03/17/2020) |
| 03/20/2020 | <a href="#">86</a> | <b>STRICKEN SUPPLEMENT/AMENDMENT to <a href="#">73</a> Counterclaim</b> by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Track Changes to Amended Counterclaims)(Tamkin, Gregory) Modified on 1/29/2021 to strike pursuant to <a href="#">233</a> Order (angar, ). (Entered: 03/20/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 03/23/2020 | <a href="#">87</a> | RESTRICTED DOCUMENT - Level 1: by Counter Claimant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit Exhibit A - Declaration of L. Ferry, # <a href="#">2</a> Exhibit Exhibit B - Confidentiality Agreement, # <a href="#">3</a> Exhibit Exhibit C - GTM Architects Correspondence, # <a href="#">4</a> Exhibit Exhibit D - March 12, 2020 Letter, # <a href="#">5</a> Exhibit Exhibit E - Declaration of C. Henson, # <a href="#">6</a> Exhibit Exhibit F - Excerpts from B. Lefever Depo.)(Tamkin, Gregory) (Entered: 03/23/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 03/23/2020 | 88                 | ORDER: Before the Court is Counterclaimant National Cost's Motion for Preliminary Injunction <a href="#">87</a> . Counterclaim Defendant Titan Manufacturing Solutions shall respond to this motion on or before <b><u>April 6, 2020</u></b> . Counterclaimant shall then reply on or before <b><u>April 13, 2020</u></b> . After receiving Counterclaimant's reply, the Court will determine whether an evidentiary hearing is necessary. SO ORDERED by Judge William J. Martinez on 03/23/2020. Text Only Entry (wjmlc1) (Entered: 03/23/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/23/2020 | 89                 | MOTION for Preliminary Injunction, by Counter Claimant National Cost, Inc. (Public Entry to <a href="#">87</a> Level 1 Restricted Document) - Text Only Entry (angar, ) (Entered: 03/25/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/25/2020 | <a href="#">90</a> | ANSWER to <a href="#">14</a> Complaint by National Cost, Inc..(Tamkin, Gregory) (Entered: 03/25/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |



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| 04/03/2020 | <a href="#">91</a>  | MOTION to Dismiss for Failure to State a Claim by Plaintiff Titan Manufacturing Solutions, Inc., Counter Defendant Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C)(Quiat, Laurin) (Entered: 04/03/2020)                                                                                                                                          |
| 04/06/2020 | <a href="#">92</a>  | MOTION for Leave to Restrict by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 04/06/2020)                                                                                                                                                                                                                                                                                                       |
| 04/06/2020 | <a href="#">93</a>  | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F)(Quiat, Laurin) (Entered: 04/06/2020)                                                                                                                   |
| 04/06/2020 | 95                  | Plaintiff Titan Manufacturing Solutions, Inc.'s Brief in Opposition to National Cost, Inc. D/B/A. National Tax Groups' 89 Motion for Preliminary Injunction, filed by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry to <a href="#">93</a> Restricted level 1 Document) Text Only Entry (angar, ) (Entered: 04/08/2020)                                                                                                             |
| 04/07/2020 | 94                  | MEMORANDUM regarding <a href="#">92</a> MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 4/7/2020. Text Only Entry (wjmsec, ) (Entered: 04/07/2020)                                                                                                                                                                                                 |
| 04/13/2020 | <a href="#">96</a>  | RESTRICTED DOCUMENT - Level 1: by Counter Claimant National Cost, Inc., Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1 - Lefever Deposition Transcript, # <a href="#">2</a> Exhibit 2 - Cooper Pierce Email, # <a href="#">3</a> Exhibit 3 - Supplemental Response to Interrogatory No. 1)(Tamkin, Gregory) (Entered: 04/13/2020)                                                                                   |
| 04/13/2020 | 97                  | Reply in Support of Motion 89 for Preliminary Injunction, filed by Counter Claimant National Cost, Inc., Defendant National Cost, Inc. (Public Entry to <a href="#">96</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 04/14/2020)                                                                                                                                                                                                   |
| 04/14/2020 | 98                  | ORDER GRANTING <a href="#">92</a> <i>Motion for Leave to Restrict</i> . Finding the requirements of Local Rule 7.2(c) have been met, the Court GRANTS the Motion. Accordingly, IT IS ORDERED that the Exhibits supporting National Tax Motion for Preliminary Injunction filed at Dkt. 87-1 and 87-6 shall retail Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 4/14/2020. Text Only Entry (skclc2) (Entered: 04/14/2020) |
| 04/16/2020 | <a href="#">99</a>  | ORDER denying Counterclaimant's Motion for Preliminary Injunction ( <a href="#">87</a> & 89 ), by Judge William J. Martinez on 04/16/2020. (wjmlc1) (Entered: 04/16/2020)                                                                                                                                                                                                                                                                        |
| 04/20/2020 | <a href="#">100</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 04/20/2020)                                                                                                                                                                                                                                                                                                                   |
| 04/20/2020 | 101                 | MEMORANDUM regarding <a href="#">100</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 4/20/2020. Text Only Entry (wjmsec, ) (Entered: 04/20/2020)                                                                                                                                                                     |
| 04/24/2020 | <a href="#">102</a> | RESPONSE to <a href="#">91</a> MOTION to Dismiss for Failure to State a Claim filed by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 04/24/2020)                                                                                                                                                                                                                                              |
| 04/27/2020 | <a href="#">103</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 04/27/2020)                                                                                                                                                                                                                                                                                                                                   |
| 04/27/2020 | <a href="#">104</a> | REPLY to Response to 89 MOTION for Preliminary Injunction <i>REDACTED</i> filed by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 04/27/2020)                                                                                                                                                                                                                                                    |
| 04/28/2020 | 105                 | MEMORANDUM regarding <a href="#">103</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge                                                                                                                                                                                                                                                                        |

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|            |                     | William J. Martinez on 4/28/2020. Text Only Entry (wjmsc, ) (Entered: 04/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 05/08/2020 | <a href="#">106</a> | REPLY to Response to <a href="#">91</a> MOTION to Dismiss for Failure to State a Claim filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 05/08/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 05/15/2020 | 107                 | MINUTE ORDER <i>SETTING DISCOVERY BRIEFING</i> : The parties contacted chambers pursuant to SKC Prac. Standards §E(3) regarding a discovery dispute. Accordingly, IT IS ORDERED that the parties shall file simultaneous "Discovery Briefs" concerning objections to 6 of Defendant National Cost, Inc.'s Discovery Requests by 5/22/2020. In no event shall the Briefs exceed 18 pages double-spaced. Exhibits are limited to the discovery responses at issue and the 5/8/2020 Letter from Plaintiff to Defendant concerning supplemental discovery responses. If either party believes these Exhibits should be filed under restriction pursuant to Local Rule 7.2, Plaintiff is, in lieu of filing the exhibits, granted leave to email them to Chambers (Crews_Chambers@cod.uscourts.gov) for <i>in camera</i> review. All counsel shall be cc'd to the email transmitting exhibits. Finally, the "Discovery Briefs" <b><u>shall not be filed as a "Motion"</u></b> . SO ORDERED by Magistrate Judge S. Kato Crews on 5/15/2020. Text Only Entry (skclc2) (Entered: 05/15/2020) |
| 05/18/2020 | 108                 | ORDER GRANTING <a href="#">100</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. Accordingly, Docket No. <a href="#">93</a> and its exhibits shall retain Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 5/18/2020. Text Only Entry (skclc2) (Entered: 05/18/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 05/18/2020 | 109                 | ORDER GRANTING <a href="#">103</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. Accordingly, Docket Nos. <a href="#">96</a> and [96-(1)] shall retain their Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 5/18/2020. Text Only Entry (skclc2) (Entered: 05/18/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 05/22/2020 | <a href="#">110</a> | RESTRICTED DOCUMENT - Level 1 - Titan Manufacturing Solutions, Inc.'s Discovery Brief: by Plaintiff Titan Manufacturing Solutions, Inc... (Quiat, Laurin) Modified on 5/26/2020 to add title (angar, ). (Entered: 05/22/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 05/22/2020 | <a href="#">111</a> | RESTRICTED DOCUMENT - Level 1 - National Cost, Inc.'s Discovery Brief: by Counter Claimant National Cost, Inc., Defendant National Cost, Inc... (Tamkin, Gregory) Modified on 5/26/2020 to add title (angar, ). (Entered: 05/22/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 05/28/2020 | <a href="#">112</a> | MOTION to Withdraw as Attorney by Plaintiff Titan Manufacturing Solutions, Inc., Counter Defendant Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Notice of Withdrawal)(Barnacle, Colin) (Entered: 05/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 05/28/2020 | 113                 | MEMORANDUM regarding <a href="#">112</a> MOTION to Withdraw as Attorney filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 5/28/2020. Text Only Entry (wjmsc, ) (Entered: 05/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 05/28/2020 | 114                 | ORDER GRANTING <a href="#">112</a> <i>Motion to Withdraw as Attorney</i> . The Court finds the requirements of D.C.COLO.LAttyR 5(b) have been met. Therefore, the Motion is GRANTED. IT IS ORDERED that Attorney Ashley Elizabeth Calhoun is TERMINATED as counsel for Plaintiff/Counter-Defendant Titan Manufacturing Solutions, Inc. The Court notes that Plaintiff/Counter-Defendant continues to be represented by Attorneys Colin L. Barnacle and Christopher J. Eby. IT IS FURTHER ORDERED that the Clerk of the Court shall cancel future ECF filing notifications to Attorney Ashley Elizabeth Calhoun. SO ORDERED by Magistrate Judge S. Kato Crews on 5/28/2020. Text Only Entry (skclc2) (Entered: 05/28/2020)                                                                                                                                                                                                                                                                                                                                                            |



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| 06/05/2020 | <a href="#">115</a> | MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 06/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 06/05/2020 | <a href="#">116</a> | BRIEF <i>re: Discovery - REDACTED</i> by Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 06/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 06/05/2020 | 117                 | MEMORANDUM regarding <a href="#">115</a> MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 6/5/2020. Text Only Entry (wjmsec, ) (Entered: 06/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 06/05/2020 | <a href="#">118</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 06/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 06/08/2020 | 119                 | MEMORANDUM regarding <a href="#">118</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 6/8/2020. Text Only Entry (wjmsec, ) (Entered: 06/08/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/12/2020 | <a href="#">120</a> | Stipulated MOTION to Amend/Correct/Modify 85 Order on Motion to Amend/Correct/Modify,,,,,,,,, <i>Scheduling Order</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 06/12/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 06/12/2020 | 121                 | MEMORANDUM regarding <a href="#">120</a> Stipulated MOTION to Amend/Correct/Modify 85 Order on Motion to Amend/Correct/Modify,,,,,,,,, <i>Scheduling Order</i> filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 6/12/2020. Text Only Entry (wjmsec, ) (Entered: 06/12/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/16/2020 | 122                 | ORDER GRANTING <a href="#">115</a> & <a href="#">118</a> <i>Unopposed Motions for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motions are GRANTED. The Clerk of Court shall ensure that Docket Nos. <a href="#">110</a> & <a href="#">111</a> retain their Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 6/16/2020. Text Only Entry (skclc2) (Entered: 06/16/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 06/16/2020 | 123                 | ORDER GRANTING <a href="#">120</a> <i>Motion to Amend/Correct/Modify Scheduling Order</i> . For good cause shown, the Motion to Modify Scheduling Order [# <a href="#">120</a> ] is GRANTED. Accordingly, IT IS ORDERED that the Scheduling Order is modified as follows: <b><u>Affirmative Expert Designation Deadline</u></b> is 8/11/2020; <b><u>Rebuttal Expert Designation Deadline</u></b> is 9/11/2020; <b><u>Written Discovery Service Deadline</u></b> is 9/14/2020; <b><u>Discovery Cut-Off</u></b> is 10/16/2020; <b><u>Dispositive Motions Deadline</u></b> is 10/30/2020. In light of these changes, IT IS FURTHER ORDERED that the <b><u>Proposed Final Pretrial Order Deadline</u></b> is 12/21/2020; and a <b><u>Telephonic Final Pretrial Conference</u></b> is set for 12/28/2020 at 10:00 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. The Parties shall appear by initiating a joint conference call amongst themselves prior to calling Chambers (303.335.2124) at the time of the Conference. SO ORDERED by Magistrate Judge S. Kato Crews on 6/16/2020. Text Only Entry (skclc2) (Entered: 06/16/2020) |
| 06/16/2020 | 124                 | MINUTE ORDER <i>Setting Telephonic Discovery Hearing</i> . The Court has reviewed the Discovery Briefs [## <a href="#">110</a> & <a href="#">111</a> ], and requires a hearing for further discussion and to issue a ruling. Accordingly, IT IS ORDERED that a Telephonic Discovery Hearing is set for 6/18/2020 at 03:30 PM in Courtroom C201 before Magistrate Judge S. Kato Crews. Dial in information for the Discovery Hearing is as follows:<br><br>CONFERENCE CALL LINE: (888) 251-2909<br>ACCESS CODE: 5662814#                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

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|            |                     | SO ORDERED by Magistrate Judge S. Kato Crews on 6/16/2020. Text Only Entry (skclc2) (Entered: 06/16/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 06/18/2020 | <a href="#">125</a> | COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Telephone Discovery Hearing held on 6/18/2020. See Courtroom Minutes for specific discovery related orders. FTR: Courtroom C-201. (amont, ) (Entered: 06/18/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 07/15/2020 | 126                 | MINUTE ORDER re: <i>7/15/2020 Discovery Dispute Call</i> . On 7/14/2020, the Parties jointly emailed Chambers regarding a discovery dispute over confidentiality designations under the Protective Order [# <a href="#">47</a> ]. On 7/15/2020, both Parties contacted Chambers by telephone pursuant to Magistrate Judge Crews' Practice Standards §E.3. After considering these particular issues, the Court finds they would be better addressed by traditional motion briefing, not § E.3. of his practice standards. Accordingly, IT IS ORDERED that the Parties are authorized to file motions on these discovery issues pursuant to Local Rules 7.1 and 37.1, and the mechanism for challenging Attorneys Eyes Only and confidentiality designations provided for at paragraph 8 of the Protective Order [# <a href="#">47</a> ]. SO ORDERED by Magistrate Judge S. Kato Crews on 7/15/2020. Text Only Entry (skclc2) (Entered: 07/15/2020) |
| 07/17/2020 | <a href="#">127</a> | STIPULATION <i>Dismissal of Claims without Prejudice</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 07/17/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 07/21/2020 | <a href="#">128</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit A -Titan June 24, 2020 Letter, # <a href="#">2</a> Exhibit B - National Tax June 26, 2020 Response Letter)(Shoaei, Maral) (Entered: 07/21/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 07/21/2020 | 129                 | National Cost, Inc.'s Motion to Remove Highly Confidential Designation Pursuant to Section 8 of the Stipulated Protective Order, by Defendant National Cost, Inc. Public Entry to <a href="#">128</a> Restricted Level 1 Document) - Text Only Entry (angar, ) (Entered: 07/22/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 07/22/2020 | 130                 | MEMORANDUM regarding 129 MOTION for Order to filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 7/22/2020. Text Only Entry (wjmsec, ) (Entered: 07/22/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 07/25/2020 | <a href="#">131</a> | TRANSCRIPT of Telephone Discovery Hearing held on June 18, 2020 before Magistrate Judge Crews. Pages: 1-66.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Patterson Transcription Company, ) (Entered: 07/25/2020)                         |
| 07/27/2020 | <a href="#">132</a> | Unopposed MOTION to Amend/Correct/Modify 123 Order on Motion to Amend/Correct/Modify,,,, <i>Scheduling Order</i> by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 07/27/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 07/28/2020 | 133                 | MEMORANDUM regarding <a href="#">132</a> Unopposed MOTION to Amend/Correct/Modify 123 Order on Motion to Amend/Correct/Modify,,,, <i>Scheduling Order</i> filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 7/28/2020. Text Only Entry (wjmsec, ) (Entered: 07/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 07/28/2020 | 134                 | ORDER GRANTING <a href="#">132</a> <i>Unopposed Motion to Amend/Correct/Modify Scheduling Order</i> . For good cause shown, the Court GRANTS the Motion. Accordingly, IT IS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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|            |                     | ORDERED that the Scheduling Order is MODIFIED as follows: <b><u>Affirmative Experts Deadline</u></b> is 9/11/2020; <b><u>Rebuttal Experts Deadline</u></b> is 10/12/2020; <b><u>Written Discovery Deadline</u></b> is 10/16/2020; <b><u>Discovery Deadline</u></b> is 11/16/2020; <b><u>Dispositive Motion Deadline</u></b> is 11/30/2020. In light of these changes, IT IS FURTHER ORDERED that the <b><u>Telephonic Final Pretrial Conference</u></b> is RESET for 1/26/2021 at 10:30 AM in Courtroom C201 before Magistrate Judge S. Kato Crews--call-in instructions remain the same ( <i>See</i> #123). The <b><u>Proposed Final Pretrial Order</u></b> is due by 1/19/2021. SO ORDERED by Magistrate Judge S. Kato Crews on 7/28/2020. Text Only Entry (skclc2) (Entered: 07/28/2020) |
| 08/04/2020 | <a href="#">135</a> | MOTION for Leave to Restrict by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 08/04/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 08/05/2020 | 136                 | MEMORANDUM regarding <a href="#">135</a> MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 8/5/2020. Text Only Entry (wjmsec, ) (Entered: 08/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 08/11/2020 | <a href="#">137</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G)(Quiat, Laurin) (Entered: 08/11/2020)                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 08/11/2020 | 138                 | ORDER GRANTING <a href="#">135</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket Nos. 128-1 and 128-2 retain Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 8/11/2020. Text Only Entry (skclc2) (Entered: 08/11/2020)                                                                                                                                                                                                                                                                                                                                                                               |
| 08/11/2020 | 139                 | Titan Manufacturing Solutions, Inc.'s Brief in Opposition to 129 Motion to Remove Highly Confidential Designation, filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry to <a href="#">137</a> Restricted Level 1 Entry) - Text Only Entry (angar, ) (Entered: 08/12/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 08/20/2020 | <a href="#">140</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Redacted - Titan Manufacturing's Brief in Opposition to Motion to Remove Highly Confidential Designation)(Quiat, Laurin) (Entered: 08/20/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/20/2020 | 141                 | MEMORANDUM regarding <a href="#">140</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 8/20/2020. Text Only Entry (wjmsec, ) (Entered: 08/20/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 08/24/2020 | <a href="#">142</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G)(Quiat, Laurin) (Entered: 08/24/2020)                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 08/24/2020 | 144                 | Titan Manufacturing Solutions, Inc.'s Corrected Brief in Opposition to 129 Motion to Remove Highly Confidential Designation, filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry to <a href="#">142</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 08/25/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 08/25/2020 | <a href="#">143</a> | RESTRICTED DOCUMENT - Level 1: by Counter Claimant National Cost, Inc., Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C) (Shoaei, Maral) (Entered: 08/25/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 08/25/2020 | 145                 | National Cost, Inc.'s Reply in Support of 129 Motion to Remove Highly Confidential Designation Pursuant to Section 8 Of the Stipulated Protective Order, filed by Counter                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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|            |                     | Claimant National Cost, Inc., Defendant National Cost, Inc. (Public Entry to <a href="#">143</a> Restricted Level 1 Document) Text Only Entry (angar, ) (Entered: 08/25/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 08/26/2020 | <a href="#">146</a> | ORDER re <a href="#">140</a> Motion for Leave to Restrict. The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket Nos. <a href="#">137</a> Restricted Document and <a href="#">142</a> Restricted Document remain under Level 1 restriction. By Magistrate Judge S. Kato Crews on 8/26/2020. Text Only Entry(skclcl1) (Entered: 08/26/2020)                                                                                                                                                                                              |
| 08/27/2020 | <a href="#">147</a> | ORDER: For the reasons stated herein, the 129 MOTION TO REMOVE HIGHLY CONFIDENTIAL DESIGNATION is GRANTED. By Magistrate Judge S. Kato Crews on 8/27/2020.(skclcl1) (Entered: 08/27/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 08/28/2020 | <a href="#">148</a> | MOTION to Stay <i>Order to Remove Highly Confidential Designation Pending Objections</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 08/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 08/28/2020 | <a href="#">149</a> | MEMORANDUM regarding <a href="#">148</a> MOTION to Stay <i>Order to Remove Highly Confidential Designation Pending Objections</i> filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 8/28/2020. Text Only Entry (wjmsec, ) (Entered: 08/28/2020)                                                                                                                                                                                                                                                                                                                              |
| 08/28/2020 | <a href="#">150</a> | ORDER granting <a href="#">148</a> Motion to Stay. Given Titan's stated concerns regarding disclosure of the overlapping list, the Court is persuaded that its Order requiring de-designation should be STAYED pending the resolution of Titan's forthcoming objections. By Magistrate Judge S. Kato Crews on 8/28/2020. Text Only Entry(skclcl1) (Entered: 08/28/2020)                                                                                                                                                                                                                                                                                     |
| 09/08/2020 | <a href="#">151</a> | MOTION for Leave to Restrict by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 09/08/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 09/08/2020 | <a href="#">152</a> | MEMORANDUM regarding <a href="#">151</a> MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 9/8/2020. Text Only Entry (wjmsec, ) (Entered: 09/08/2020)                                                                                                                                                                                                                                                                                                                                                                                                           |
| 09/09/2020 | <a href="#">153</a> | ORDER denying <a href="#">151</a> Motion for Leave to Restrict. The Court has reviewed the Motion for Leave to Restrict and finds it does not comply with Local Rule 7.2(c) requirements. Specifically, the Motion is based on the Protective Order 46 which alone is "insufficient to justify restriction." D.C.Colo.LCivR 7.2(c)(2). Additionally, Defendant is required to address all the factors at Local Rule 7.2(c) in its Motion. D.C.Colo.LCivR 7.2(c)(1)-(5). As such, the Motion for Leave to Restrict is DENIED without prejudice. SO ORDERED by Magistrate Judge S. Kato Crews on 09-09-2020. Text Only Entry (skclcl2). (Entered: 09/09/2020) |
| 09/10/2020 | <a href="#">154</a> | <b>STRICKEN</b> OBJECTION/Appeal of Magistrate Judge Decision to District Court re <a href="#">147</a> Order on Motion for Order by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) Modified on 1/15/2021 to strike pursuant to Order #216 (jgonz, ). (Entered: 09/10/2020)                                                                                                                                                                                                                                                                                                                      |
| 09/14/2020 | <a href="#">155</a> | MOTION to Withdraw as Attorney by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Eby, Christopher) (Entered: 09/14/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 09/14/2020 | <a href="#">156</a> | MOTION to Withdraw as Attorney by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Barnacle, Colin) (Entered: 09/14/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |



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| 09/14/2020 | 157                 | MEMORANDUM regarding <a href="#">156</a> MOTION to Withdraw as Attorney filed by Titan Manufacturing Solutions, Inc., <a href="#">155</a> MOTION to Withdraw as Attorney filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 9/14/2020. Text Only Entry (wjmssec, ) (Entered: 09/14/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 09/14/2020 | 158                 | ORDER granting <a href="#">155</a> and <a href="#">156</a> <i>Motion to Withdraw as Attorney</i> . The Court finds the requirements of D.C.COLO.LAttyR 5(b) have been met. Therefore, the Motion is GRANTED. IT IS ORDERED that Attorneys Christopher John Eby and Colin Louis Barnacle are TERMINATED as counsel for Plaintiff Titan Manufacturing Solutions, Inc. The Court notes Plaintiff continues to be represented by Jacob A. Bruner and Laurin D. Quiat. IT IS FURTHER ORDERED that the Clerk of the Court shall cancel future ECF filing notifications to Christopher John Eby and Colin Louis Barnacle. SO ORDERED by Magistrate Judge S. Kato Crews on 09-14-2020. Text Only Entry(skclc2). (Entered: 09/14/2020)                                                                            |
| 09/14/2020 | <a href="#">159</a> | Renewed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 09/14/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 09/14/2020 | 160                 | MEMORANDUM regarding <a href="#">159</a> Renewed MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 9/14/2020. Text Only Entry (wjmssec, ) (Entered: 09/14/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 09/14/2020 | 161                 | ORDER denying <a href="#">159</a> Motion for Leave to Restrict. The Court finds the particular requirements under Local Rule 7.2(c)(1)-(5) have not been addressed in Defendant's Motion. The Defendant failed to address the interest to be protected, the serious injury that would result if access is not restricted, and an explanation why no alternative to restriction is adequate. The Court notes Plaintiff designated the documents as confidential and is best suited to address all of the factors at D.C.COLO.LCivR 7.2(c)(1)-(5). The Motion for Leave to Restrict is DENIED without prejudice. SO ORDERED by Magistrate Judge S. Kato Crews on 09-14-2020. Text Only Entry (skclc2). (Entered: 09/14/2020)                                                                               |
| 09/17/2020 | <a href="#">162</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 09/17/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 09/17/2020 | 163                 | MINUTE ORDER <i>SETTING DISCOVERY HEARING</i> : The parties contacted chambers pursuant to SKC Prac. Standards sec. E(3) regarding a discovery dispute. Accordingly, IT IS ORDERED that a Discovery Conference is set for 9/29/2020 at 9:30 AM in Courtroom C201 before Magistrate Judge S. Kato Crews. Dial in information for the Discovery Conference is as follows:<br><br>CONFERENCE CALL LINE: (888) 251-2909<br>ACCESS CODE: 5662814#<br><br>In advance of the conference, the parties shall email (Crews_Chambers@cod.uscourts.gov) a copy of the Request for Production, including the objection, as well as the conferral communications regarding the parties' respective positions.<br><br>By Magistrate Judge S. Kato Crews on 9/17/2020.<br>Text Only Entry (skclc1) (Entered: 09/17/2020) |
| 09/17/2020 | 164                 | MEMORANDUM regarding <a href="#">162</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |



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|            |                     | by Judge William J. Martinez on 9/17/2020. Text Only Entry (wjmssec, ) (Entered: 09/17/2020)                                                                                                                                                                                                                                                                                                                                                                                                        |
| 09/22/2020 | <a href="#">165</a> | MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 09/22/2020)                                                                                                                                                                                                                                                                                                                                    |
| 09/23/2020 | 166                 | MEMORANDUM regarding <a href="#">165</a> MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 9/23/2020. Text Only Entry (wjmssec, ) (Entered: 09/23/2020)                                                                                                                                                                                                                                 |
| 09/24/2020 | <a href="#">167</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H)(Shoaei, Maral) (Entered: 09/24/2020)                                                                                                                        |
| 09/24/2020 | 228                 | Response to Titan Manufacturing Solutions, Inc.'S Objections to Magistrate Judge Crews' Minute Order Removing Highly Confidential Designation and Re-Designating Material as Confidential, by Defendant National Cost, Inc.. (public Entry to <a href="#">167</a> Restricted Level 1) Text Only Entry.(angar, ) (Entered: 01/26/2021)                                                                                                                                                               |
| 09/25/2020 | 168                 | ORDER granting <a href="#">162</a> Motion for Leave to Restrict. The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. <a href="#">143</a> and its exhibits retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 09-25-2020. Text Only Entry (skclc2). (Entered: 09/25/2020)                                                                    |
| 09/28/2020 | <a href="#">169</a> | Fourth MOTION to Amend/Correct/Modify <a href="#">36</a> Scheduling Order by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 09/28/2020)                                                                                                                                                                                                                                                                                                                                   |
| 09/28/2020 | 170                 | MEMORANDUM regarding <a href="#">169</a> Fourth MOTION to Amend/Correct/Modify <a href="#">36</a> Scheduling Order filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 9/28/2020. Text Only Entry (wjmssec, ) (Entered: 09/28/2020)                                                                                                                                                                                    |
| 09/29/2020 | <a href="#">171</a> | COURTROOM MINUTES for proceedings held before Magistrate Judge S. Kato Crews: Telephone Discovery Hearing held on 9/29/2020. Defendants request for production 21 is overly broad as written. As agreed upon in the email dated September 10, 2020, Plaintiff shall respond to bullet points 1, 2, 3, and 6 utilizing the search terms. Plaintiff does not need to respond to bullet points 4 and 5. Production shall be made within 14 days. FTR: Courtroom C-201. (amont, ) (Entered: 09/29/2020) |
| 10/01/2020 | <a href="#">172</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 10/01/2020)                                                                                                                                                                                                                                                                                                                                 |
| 10/01/2020 | 173                 | Titan Manufacturing Solutions, Inc.'s Motion for Leave to File Reply in Support of Objections to Minute Order re: Motion to Remove Highly Confidential Designation, by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry to <a href="#">172</a> Restricted Level 1) - Text Only Entry (angar, ) (Entered: 10/01/2020)                                                                                                                                                                    |
| 10/02/2020 | <a href="#">174</a> | RESPONSE to <a href="#">169</a> Fourth MOTION to Amend/Correct/Modify <a href="#">36</a> Scheduling Order filed by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Email Exchange) (Shoaei, Maral) (Entered: 10/02/2020)                                                                                                                                                                                                                                               |
| 10/05/2020 | 175                 | ORDER denying Plaintiff Titan Manufacturing Solutions, Inc.'s Motion for Leave to File Reply in Support of Objections to Minute Order Re: Motion to Remove Highly Confidential Designation <a href="#">172</a> . Plaintiff's Motion is DENIED for lack of good cause shown. SO ORDERED Judge William J. Martinez on 10/5/2020. Text Only Entry(angar, ) (Entered: 10/05/2020)                                                                                                                       |

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| 10/06/2020 | 176                 | <p>ORDER granting in part and denying in part <a href="#">169</a> Motion to Amend/Correct/Modify 16(b) Scheduling Order. Plaintiff moved the Court for an enlargement of approximately 45 days for various discovery related deadlines. The Court does not find good cause to grant Plaintiff's Motion. Specifically, the need for additional time relates to Plaintiff's desire to conduct in-person depositions. Plaintiff argues concerns regarding travel during Covid-19 prevented them from traveling to Florida for in-person depositions in July. While the Court is sympathetic to Plaintiff's concerns regarding COVID-19, the necessary depositions could have been conducted virtually. Indeed, given the continued uncertainty around Covid-19, the Court would have expected the Parties to make other arrangements in order to continue prosecuting this case. Given Defendant's Response to Plaintiff's Motion, however, the Court will GRANT a two week extension on certain deadlines.</p> <p>Accordingly, the 16(b) Scheduling Order is modified as follows:</p> <p>Rebuttal Experts deadline - 10-26-2020;</p> <p>Discovery Service Deadline - 10-30-2020;</p> <p>Discovery Cutoff deadline - 11-30-2020;</p> <p>Dispositive Motions deadline - 12-14-2020.</p> <p>SO ORDERED by Magistrate Judge S. Kato Crews on 10-6-2020. Text Only Entry (skclc2). (Entered: 10/06/2020)</p> |
| 10/08/2020 | <a href="#">177</a> | <p>MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Redacted Response to Titan Manufacturing Solutions Objections to Magistrate Judge Crew' Minute Order Removing Highly Confidential Designation and Re-Designating Material as Confidential)(Shoaei, Maral) (Entered: 10/08/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 10/08/2020 | 178                 | <p>MEMORANDUM regarding <a href="#">177</a> MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 10/8/2020. Text Only Entry (wjmsec, ) (Entered: 10/08/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 10/15/2020 | <a href="#">179</a> | <p>Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 10/15/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 10/16/2020 | 180                 | <p>MEMORANDUM regarding <a href="#">179</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 10/2/2020. Text Only Entry (wjmsec, ) (Entered: 10/16/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 10/26/2020 | 181                 | <p>MINUTE ORDER RE: <i>SETTING DISCOVERY BRIEFING</i>: The parties contacted chambers pursuant to SKC Prac. Standards §E(3) regarding a discovery dispute. Accordingly, IT IS ORDERED that the parties shall file simultaneous "Discovery Briefs" concerning the deposition of Ms. Hensen by 10-30-2020. In no event shall the Briefs exceed 7 pages double-spaced. Exhibits shall not exceed a total of 15 pages. The "Discovery Briefs" <b>shall not be filed as a "Motion"</b>. SO ORDERED by Magistrate Judge S. Kato Crews on 10-26-2020. Text Only Entry (skclc2). (Entered: 10/26/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 10/30/2020 | <a href="#">182</a> | <p>ORDER Overruling Objection to August 27, 2020 <a href="#">154</a> Order of United States Magistrate Judge, by Judge William J. Martinez on 10/30/2020.(angar, ) (Entered: 10/30/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 10/30/2020 | <a href="#">183</a> | <p>BRIEF - <i>Discovery</i> by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - October 26, 2020, # <a href="#">2</a> Exhibit B - October 12, 2020)(Shoaei, Maral) (Entered: 10/30/2020)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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| 10/30/2020 | <a href="#">184</a> | RESTRICTED DOCUMENT - Level 1 -Plaintiff Titan Manufacturing Solutions, Inc.s Discovery Brief in Support of the In-Person Deposition of Chelsea Henson: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J)(Quiat, Laurin) Modified on 11/2/2020 to add text (angar, ). (Entered: 10/30/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 11/05/2020 | 185                 | ORDER granting <a href="#">179</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#172] and [#172-1]retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 11-5-2020. Text Only Entry (skclc2). (Entered: 11/05/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 11/16/2020 | 186                 | <p>MINUTE ORDER RE: DISCOVERY DISPUTE: This matter is before the Court on the parties' discovery briefs. <a href="#">183</a> and <a href="#">184</a> . Considering the COVID-19 national pandemic, the parties cannot agree whether the deposition of Chelsea Henson should be conducted remotely or in-person in Florida where she resides. Defendant seeks an order for Ms. Henson's remote deposition purportedly based on concerns related to the pandemic. Plaintiff insists on an in-person deposition in Florida claiming this dispute arises from "late-stage discovery tactics" by Defendant versus true pandemic-related concerns.</p> <p>In relevant part, District Court General Order 2020-19 specifies "this Court continues to evaluate its response to the spread of COVID-19 and recognizes the need to assist in the preservation of public safety and health while effectively administering justice during the COVID-19 pandemic." These are serious times and the recent surge in the spread of COVID-19 in Colorado, Florida, and across the United States is a real and present danger. While not ideal, remote depositions are a reasonable alternative that help preserve public safety and health, especially when considering the current surge. For these reasons, the Court finds good cause for the entry of an order requiring Ms. Henson's deposition to take place by videoconference.</p> <p>It is ORDERED Ms. Henson's deposition take place by videoconference. FURTHER ORDERED her deposition shall be completed by no later than <b>December 31, 2020</b>. SO ORDERED by Magistrate Judge S. Kato Crews on 11/16/2020. Text Only Entry (skc) (Entered: 11/16/2020)</p> |
| 12/02/2020 | <a href="#">187</a> | MOTION to Amend/Correct/Modify <i>Scheduling Order and Temporarily Suspend Dispositive Motion Deadline Pending Resolution of Titan's Motion to Dismiss Counterclaims of Defendant National Cost, Inc.</i> by Plaintiff Titan Manufacturing Solutions, Inc., Counter Defendant Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 12/02/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 12/02/2020 | 188                 | MEMORANDUM regarding <a href="#">187</a> MOTION to Amend/Correct/Modify <i>Scheduling Order and Temporarily Suspend Dispositive Motion Deadline Pending Resolution of Titan's Motion to Dismiss Counterclaims of Defendant National Cost, Inc.</i> filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 12/2/2020. Text Only Entry (wjmsec, ) (Entered: 12/02/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 12/04/2020 | <a href="#">189</a> | RESPONSE to <a href="#">187</a> MOTION to Amend/Correct/Modify <i>Scheduling Order and Temporarily Suspend Dispositive Motion Deadline Pending Resolution of Titan's Motion to Dismiss Counterclaims of Defendant National Cost, Inc.</i> filed by Defendant National Cost, Inc.. (Shoeai, Maral) (Entered: 12/04/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 12/08/2020 | <a href="#">190</a> | REPLY to Response to <a href="#">187</a> MOTION to Amend/Correct/Modify <i>Scheduling Order and Temporarily Suspend Dispositive Motion Deadline Pending Resolution of Titan's Motion</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|            |                     | <i>to Dismiss Counterclaims of Defendant National Cost, Inc.</i> filed by Plaintiff Titan Manufacturing Solutions, Inc., Counter Defendant Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 12/08/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 12/08/2020 | <a href="#">191</a> | RESTRICTED DOCUMENT - Level 1 - Exhibits to <a href="#">190</a> : by Plaintiff Titan Manufacturing Solutions, Inc., Counter Defendant Titan Manufacturing Solutions, Inc... (Quiat, Laurin) Modified on 12/8/2020 to add title (angar, ). (Entered: 12/08/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 12/14/2020 | <a href="#">192</a> | RESTRICTED DOCUMENT - Level 1 : by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Declaration of Maral Shoaie in Support of National Cost, Inc.'s Motion for Partial Summary Judgment, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5, # <a href="#">7</a> Exhibit 6, # <a href="#">8</a> Exhibit 7, # <a href="#">9</a> Exhibit 8, # <a href="#">10</a> Exhibit 9, # <a href="#">11</a> Exhibit 10, # <a href="#">12</a> Exhibit 11, # <a href="#">13</a> Exhibit 12, # <a href="#">14</a> Exhibit 13, # <a href="#">15</a> Exhibit 14, # <a href="#">16</a> Exhibit 15, # <a href="#">17</a> Exhibit 16, # <a href="#">18</a> Exhibit 17, # <a href="#">19</a> Exhibit 18, # <a href="#">20</a> Exhibit 19, # <a href="#">21</a> Exhibit 20, # <a href="#">22</a> Exhibit 21, # <a href="#">23</a> Exhibit 22, # <a href="#">24</a> Exhibit 23, # <a href="#">25</a> Exhibit 24, # <a href="#">26</a> Exhibit 25, # <a href="#">27</a> Exhibit 26, # <a href="#">28</a> Exhibit 27, # <a href="#">29</a> Exhibit 28, # <a href="#">30</a> Exhibit 29, # <a href="#">31</a> Exhibit 30, # <a href="#">32</a> Exhibit 31, # <a href="#">33</a> Exhibit 32, # <a href="#">34</a> Exhibit 33, # <a href="#">35</a> Exhibit 34, # <a href="#">36</a> Exhibit 35, # <a href="#">37</a> Exhibit 36, # <a href="#">38</a> Exhibit 37)(Tamkin, Gregory) (Entered: 12/14/2020) |
| 12/14/2020 | <a href="#">193</a> | RESTRICTED DOCUMENT - Level 1 : by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J, # <a href="#">11</a> Exhibit K, # <a href="#">12</a> Exhibit L, # <a href="#">13</a> Exhibit M, # <a href="#">14</a> Exhibit N, # <a href="#">15</a> Exhibit O, # <a href="#">16</a> Exhibit P, # <a href="#">17</a> Exhibit Q, # <a href="#">18</a> Exhibit R, # <a href="#">19</a> Exhibit S, # <a href="#">20</a> Exhibit T, # <a href="#">21</a> Exhibit U, # <a href="#">22</a> Exhibit V, # <a href="#">23</a> Exhibit W, # <a href="#">24</a> Exhibit X, # <a href="#">25</a> Exhibit Y, # <a href="#">26</a> Exhibit Z, # <a href="#">27</a> Exhibit AA, # <a href="#">28</a> Exhibit BB, # <a href="#">29</a> Exhibit CC, # <a href="#">30</a> Exhibit DD, # <a href="#">31</a> Exhibit EE, # <a href="#">32</a> Exhibit FF, # <a href="#">33</a> Exhibit GG, # <a href="#">34</a> Exhibit HH, # <a href="#">35</a> Exhibit II, # <a href="#">36</a> Exhibit JJ, # <a href="#">37</a> Exhibit KK, # <a href="#">38</a> Exhibit LL, # <a href="#">39</a> Exhibit MM)(Quiat, Laurin) (Entered: 12/14/2020)                                                            |
| 12/14/2020 | 211                 | MOTION for Partial Summary Judgment by Defendant National Cost, Inc.. (Public Entry for <a href="#">192</a> Restricted Document, filed 12/14/2020) TEXT ONLY ENTRY (evana, ) (Entered: 01/14/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 12/14/2020 | 212                 | MOTION for Partial Summary Judgment by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry for RESTRICTED <a href="#">193</a> Document, filed 12/14/2020) TEXT ONLY ENTRY (evana, ) (Entered: 01/14/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 12/18/2020 | <a href="#">194</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 12/18/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 12/18/2020 | 195                 | MEMORANDUM regarding <a href="#">194</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 12/18/2020. Text Only Entry (wjmsc, ) (Entered: 12/18/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 12/22/2020 | 196                 | <i>Motion for Leave to Restrict.</i> The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#191] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 12-22-2020. Text Only Entry (skclc2). (Entered: 12/22/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 12/23/2020 | <a href="#">197</a> | Joint MOTION for Extension of Time to <i>Respond to ECF No. 192, 193</i> by Defendant National Cost, Inc.. (Shoaie, Maral) (Entered: 12/23/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 12/28/2020 | <a href="#">198</a> | MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1)(Shoaie, Maral) (Entered: 12/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |



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| 12/28/2020 | <a href="#">199</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Document ECF 193 Restricted to Level 1 Access) (Bruner, Jacob) (Entered: 12/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 12/29/2020 | 200                 | MEMORANDUM regarding <a href="#">198</a> MOTION for Leave to Restrict filed by National Cost, Inc., <a href="#">199</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 12/29/2020. Text Only Entry (wjmssec, ) (Entered: 12/29/2020)                                                                                                                                                                                                                                                                                                                                   |
| 12/29/2020 | 201                 | ORDER denying the Parties' Joint Motion for Extension of Time <a href="#">197</a> . The Parties' Motion is DENIED without prejudice to refile given counsel's failure to comply with WJM Revised Practice Standard II.D.2 (as revised effective December 1, 2020). This Practice Standard requires that the certificate of service for motions of this type specifically confirm that service has been made upon moving counsel's client(s) and, if appropriate, identifies the individual who has received service of the motion on behalf of any party which is not a natural person. SO ORDERED by Judge William J. Martinez on 12/29/2020. Text Only Entry(wjmssec, ) (Entered: 12/29/2020) |
| 12/29/2020 | <a href="#">202</a> | Joint MOTION for Extension of Time to <i>Respond to ECF No. 192, 193</i> by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 12/29/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 12/30/2020 | 203                 | ORDER granting the Parties' Amended Joint Motion for Extension of Time <a href="#">202</a> . The Parties are granted leave, for good cause shown, to file their Responses to each other's Partial Motion for Summary Judgment on or before <b>January 11, 2021</b> . SO ORDERED by Judge William J. Martinez on 12/30/2020. Text Only Entry(wjmssec, ) (Entered: 12/30/2020)                                                                                                                                                                                                                                                                                                                    |
| 01/05/2021 | 204                 | ORDER denying <a href="#">165</a> Motion for Leave to Restrict. Plaintiff failed to properly confer with opposing counsel which is grounds alone for denial. Accordingly, the Court DENIES Plaintiff's Motion for Leave to Restrict without prejudice for Plaintiff to refile its Motion after proper conferral with opposing counsel. SO ORDERED by Magistrate Judge S. Kato Crews on 1-5-2021. Text Only Entry (skclc2). (Entered: 01/05/2021)                                                                                                                                                                                                                                                |
| 01/05/2021 | 205                 | <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#167-0 through 167-7] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 1-5-2021. Text Only Entry (skclc2). (Entered: 01/05/2021)                                                                                                                                                                                                                                                                                                           |
| 01/05/2021 | 206                 | <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#198] and its exhibits retain its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 1-5-2021. Text Only Entry (skclc2). (Entered: 01/05/2021)                                                                                                                                                                                                                                                                                                           |
| 01/05/2021 | 207                 | <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#193]and its exhibits retain its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 1-5-2021. Text Only Entry (skclc2). (Entered: 01/05/2021)                                                                                                                                                                                                                                                                                                            |
| 01/11/2021 | <a href="#">208</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J, # <a href="#">11</a> Exhibit K, # <a href="#">12</a> Exhibit L, # <a href="#">13</a> Exhibit M, # <a href="#">14</a> Exhibit N, # <a href="#">15</a> Exhibit O)(Quiat, Laurin) (Entered: 01/11/2021)                                                                     |



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| 01/11/2021 | <a href="#">209</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Declaration of Lee Ferry, # <a href="#">2</a> Declaration of Maral Shoaee, # <a href="#">3</a> Exhibit 1, # <a href="#">4</a> Exhibit 2, # <a href="#">5</a> Exhibit 3, # <a href="#">6</a> Exhibit 4, # <a href="#">7</a> Exhibit 5, # <a href="#">8</a> Exhibit 6, # <a href="#">9</a> Exhibit 7, # <a href="#">10</a> Exhibit 8, # <a href="#">11</a> Exhibit 9, # <a href="#">12</a> Exhibit 10, # <a href="#">13</a> Exhibit 11, # <a href="#">14</a> Exhibit 12, # <a href="#">15</a> Exhibit 13, # <a href="#">16</a> Exhibit 14, # <a href="#">17</a> Exhibit 15, # <a href="#">18</a> Exhibit 16, # <a href="#">19</a> Exhibit 17, # <a href="#">20</a> Exhibit 18, # <a href="#">21</a> Exhibit 19, # <a href="#">22</a> Exhibit 20, # <a href="#">23</a> Exhibit 21, # <a href="#">24</a> Exhibit 22, # <a href="#">25</a> Exhibit 23, # <a href="#">26</a> Exhibit 24)(Tamkin, Gregory) (Entered: 01/11/2021)       |
| 01/11/2021 | 213                 | RESPONSE to 211 MOTION for Partial Summary Judgment filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry for RESTRICTED <a href="#">208</a> Document, filed 1/11/2021) TEXT ONLY ENTRY (evana, ) (Entered: 01/14/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 01/11/2021 | 214                 | RESPONSE to 212 MOTION for Partial Summary Judgment filed by Defendant National Cost, Inc..(Public Entry for RESTRICTED <a href="#">209</a> Document, filed 1/11/2021) TEXT ONLY ENTRY (evana, ) (Entered: 01/14/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 01/13/2021 | <a href="#">210</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 01/13/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 01/14/2021 | 215                 | MEMORANDUM regarding <a href="#">210</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 1/14/2021. Text Only Entry (wjmsc, ) (Entered: 01/14/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 01/15/2021 | 216                 | ORDER denying <a href="#">210</a> Motion for Leave to Restrict. The Court has reviewed Plaintiff's Motion for Leave to Restrict Docket Entry [#154] and finds it does not satisfy the particular requirements of D.C.Colo.LCivR 7.2. Specifically, Plaintiff fails to explain why no alternative to restriction is practicable or why only restriction will adequately protect the interest in question. Indeed, in reviewing the document at issue, the Court notes it contains only two instances where client information is provided. This suggests redaction, and not the more extreme measure of restriction, is the appropriate means of protecting the information Plaintiff seeks to restrict. Accordingly, the Court orders that [#154] is struck. Plaintiff may refile its objections redacting any customer information. SO ORDERED by Magistrate Judge S. Kato Crews on 1-15-2021. Text Only Entry (skelc2). (Entered: 01/15/2021)                                                                                     |
| 01/19/2021 | <a href="#">217</a> | NOTICE re 216 Order on Motion for Leave to Restrict,,, <i>REDACTED Version of Titan Manufacturing Solutions, Inc.'s Objections to Minute Order re Motion to Remove Highly Confidential Designation [ECF 147]</i> by Plaintiff Titan Manufacturing Solutions, Inc. (Quiat, Laurin) (Entered: 01/19/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 01/19/2021 | <a href="#">218</a> | Proposed Pretrial Order by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B)(Quiat, Laurin) (Entered: 01/19/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 01/22/2021 | 219                 | ORDER RE: PROPOSED FINAL PRETRIAL ORDER: This matter is before the Court <i>sua sponte</i> after its review of the proposed Final Pretrial Order <a href="#">218</a> . The proposed order fails to follow certain instructions from the form order provided on the District Court's website. First, Section 5 (Pending Motions) includes items which are not pending motions. Second, the instructions to Section 6 (Witnesses) provide: "With each witness' name, set forth... a short statement as to the nature and purpose of the witness' testimony...." The proposed order fails to provide this short statement for each witness listed. Third, the instructions to Section 7 (Exhibits) specify the list of exhibits should "identify those to be stipulated into evidence." Neither parties' exhibit list includes these stipulations.<br><br>IT IS ORDERED the Parties make the above corrections and submit an amended proposed final pretrial order <b>on or before February 5, 2021</b> . The parties shall also email |

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|            |                     | <p>a Word version of the amended proposed final pretrial order to Chambers at Crews_Chambers@cod.uscourts.gov.</p> <p>The Final Pretrial Conference set for January 26, 2021 is VACATED pending the Court's receipt of the parties' amended submission. The Court will thereafter issue a Final Pretrial Order. By Magistrate Judge S. Kato Crews on 01/22/2021. Text Only Entry (skc) (Entered: 01/22/2021)</p>                                                                                                                                                                                                                                                                            |
| 01/24/2021 | <a href="#">220</a> | Joint MOTION for Extension of Time to File Response/Reply as to 211 MOTION for Partial Summary Judgment, 212 MOTION for Partial Summary Judgment by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 01/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 01/25/2021 | 221                 | ORDER granting the parties' Joint Motion for Extension of Time to Submit Reply Brief in Support of Motion for Partial Summary Judgment <a href="#">220</a> . The parties are granted leave, for good cause shown, to file their Reply Briefs in Support of their respective Motions for Partial Summary Judgment on or before <b>January 28, 2021</b> . SO ORDERED by Judge William J. Martinez on 1/25/2021. Text Only Entry(wjmsec, ) (Entered: 01/25/2021)                                                                                                                                                                                                                               |
| 01/25/2021 | <a href="#">222</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of Docket Number 209)(Shoaei, Maral) (Entered: 01/25/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 01/25/2021 | <a href="#">223</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 01/25/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 01/26/2021 | 224                 | ORDER finding as moot <a href="#">187</a> Motion to Amend/Correct/Modify Scheduling Order. The Court notes the parties filed their respective dispositive motions thus making Plaintiff's Motion MOOT. SO ORDERED by Magistrate Judge S. Kato Crews on 1-25-2021. Text Only Entry (skclc2). (Entered: 01/26/2021)                                                                                                                                                                                                                                                                                                                                                                           |
| 01/26/2021 | 225                 | MEMORANDUM regarding <a href="#">223</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc., <a href="#">222</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 1/26/2021. Text Only Entry (wjmsec, ) (Entered: 01/26/2021)                                                                                                                                                                                                                                                                                                                       |
| 01/26/2021 | 226                 | <i>Motion for Leave to Restrict.</i> The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#208] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 1-26-2021. Text Only Entry (skclc2). (Entered: 01/26/2021)                                                                                                                                                                                                                                                                                                                       |
| 01/26/2021 | 227                 | <i>Motion for Leave to Restrict.</i> The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#209, 0-26] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 1-26-2021. Text Only Entry (skclc2). (Entered: 01/26/2021)                                                                                                                                                                                                                                                                                                                 |
| 01/28/2021 | <a href="#">229</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 38)(Tamkin, Gregory) (Entered: 01/28/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 01/28/2021 | <a href="#">230</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J, # <a href="#">11</a> Exhibit K, # <a href="#">12</a> Exhibit L, # <a href="#">13</a> Exhibit M, # <a href="#">14</a> Exhibit N, # <a href="#">15</a> Exhibit O, # <a href="#">16</a> Exhibit P, # <a href="#">17</a> Exhibit Q)(Quiat, Laurin) (Entered: 01/28/2021) |
| 01/28/2021 | 231                 | National Cost, Inc.'S Reply in Support of 211 Motion for Partial Summary Judgment, filed by Defendant National Cost, Inc. (Public Entry to <a href="#">229</a> Restricted Level 1 Document)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|            |                     | Text Only Entry (angar, ) (Entered: 01/29/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 01/28/2021 | 232                 | Titan's Reply in Support of 212 Motion for Partial Summary Judgment, filed by Plaintiff Titan Manufacturing Solutions, Inc. (Pubic Entry to <a href="#">230</a> Restricted Level 1 Document) Text Only Entry (angar, ) (Entered: 01/29/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 01/29/2021 | <a href="#">233</a> | Order Granting in Part and Denying in Part Plaintiff Titan Manufacturing Solutions, Inc.s <a href="#">91</a> Motion to Dismiss Counterclaims of National Cost, Inc. D/B/A National Tax Group Pursuant to Fed. R. Civ. P. 12(b)(6). National Tax's Amended Counterclaims (ECF No. <a href="#">86</a> ) are STRICKEN. ORDERED by Judge William J. Martinez on 1/29/2021.(angar, ) (Entered: 01/29/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 02/04/2021 | <a href="#">234</a> | RESTRICTED DOCUMENT - Level 1: by Counter Claimant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4)(Tamkin, Gregory) (Entered: 02/04/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 02/04/2021 | 236                 | MOTION for Leave to File Amended Counterclaims, by Counter Claimant National Cost, Inc. Public Entry to <a href="#">234</a> Restricted Level 1 Documents) Text Only Entry (angar, ) (Entered: 02/09/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 02/05/2021 | <a href="#">235</a> | Proposed Pretrial Order <i>Amended</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D)(Quiat, Laurin) (Entered: 02/05/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 02/10/2021 | <a href="#">237</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 02/10/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 02/11/2021 | 238                 | MINUTE ORDER RE: [#177] Leave to Restrict. This order clarifies Defendant's Motion seeking Leave to Restrict [#177] was addressed in the Court's Order at [#205.] By Magistrate Judge S. Kato Crews on 2-11-2021. Text Only Entry (skclc2). (Entered: 02/11/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 02/11/2021 | <a href="#">239</a> | FINAL PRETRIAL ORDER by Magistrate Judge S. Kato Crews on 2/11/21. This Court previously vacated the January 26, 2021 Final Pretrial Conference, and ordered the parties to revise their proposed final pretrial order and submit an amended proposed order by February 5, 2021. Having reviewed the latter, the Court now enters this Final Pretrial Order. The Parties are ORDERED to review and follow Judge Martinez's Practice Standards as they relate to the proper form and submission of witness and exhibit lists for trial, and other matters related to the preparation for trial and the trial itself. The Parties shall await an Order from Judge Martinez setting the trial dates. (Attachments: # <a href="#">1</a> Plaintiff's Exhibit List, # <a href="#">2</a> Defendant Exhibit List, # <a href="#">3</a> Plaintiff Witness List, # <a href="#">4</a> Defendant Witness List) (amont, ) (Entered: 02/11/2021) |
| 02/11/2021 | <a href="#">240</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of Docket No. 229)(Shoaci, Maral) (Entered: 02/11/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 02/12/2021 | 241                 | MEMORANDUM regarding <a href="#">237</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc., <a href="#">240</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 2/12/2021. Text Only Entry (wjmsec, ) (Entered: 02/12/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 02/12/2021 | <a href="#">242</a> | <i>Plaintiff Titan Manufacturing Solutions, Inc.'s ANSWER/REPLY to <a href="#">73</a> Counterclaim and Affirmative Defenses</i> by Titan Manufacturing Solutions, Inc..(Quiat, Laurin) (Entered: 02/12/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 02/16/2021 | 243                 | ORDER granting <a href="#">240</a> Motion for Leave to Restrict. The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#229-0-1] retains its Level                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|            |                     | 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 2-16-2021. Text Only Entry (skclc2). (Entered: 02/16/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 02/16/2021 | 244                 | ORDER granting <a href="#">237</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#230 and #230-1 through #230-17] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 2-16-2021. Text Only Entry (skclc2). (Entered: 02/16/2021)                                                                                                                                                                                                                                                                                                                                |
| 02/18/2021 | 245                 | ORDER: This matter is before the Court upon communication from counsel requesting a Status Conference to address why a Trial in excess of five days is needed in this case, pursuant to WJM Revised Practice Standards IV.A.3. A Status Conference is hereby set for <b>March 1, 2021 at 10:30 a.m., in person, in Courtroom A801</b> . Attendance in the Courtroom will be limited to counsel and the parties only. Everyone appearing in person for this hearing must abide by the rules stated in General Order 2020-10 to gain entrance to the building. For public audio access to the hearing, please call 877-336-1828 and enter access code 9449909#. SO ORDERED by Judge William J. Martinez on 2/18/2021. Text Only Entry (wjmsc, ) (Entered: 02/18/2021) |
| 02/18/2021 | <a href="#">246</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of NCI's Amended Counterclaims, # <a href="#">2</a> Exhibit 2 - Redacted Version of Redlined Amended Counterclaims)(Shoaei, Maral) (Entered: 02/18/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 02/18/2021 | 247                 | MEMORANDUM regarding <a href="#">246</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 2/18/2021. Text Only Entry (wjmsc, ) (Entered: 02/18/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 02/25/2021 | <a href="#">248</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C)(Quiat, Laurin) (Entered: 02/25/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 02/25/2021 | 257                 | Plaintiff Titan Manufacturing Solutions, Inc.'s Brief in Opposition to <a href="#">234</a> Motion for Leave to File [Second] Amended Counterclaims, filed by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry to <a href="#">248</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 04/06/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 03/01/2021 | <a href="#">249</a> | COURTROOM MINUTES for Status Conference held before Judge William J. Martinez on 3/1/2021. A 6-day trial is set to commence at 8:30 a.m. on Monday, November 15, 2021 through Tuesday, November 23, 2021 in Courtroom A801 before Judge William J. Martinez. No trial will be held Friday, November 19, 2021. An in person Final Trial Preparation Conference is set for Friday, October 29, 2021 at 2:00 p.m. in Courtroom A801 before Judge William J. Martinez. Court Reporter: Mary George. (afra) (Entered: 03/01/2021)                                                                                                                                                                                                                                        |
| 03/11/2021 | <a href="#">250</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 03/11/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 03/11/2021 | <a href="#">251</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1)(Tamkin, Gregory) (Entered: 03/11/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 03/11/2021 | 258                 | Reply in Support of <a href="#">234</a> Motion for Leave to File Amended Counterclaims, filed by Defendant National Cost, Inc. (Public Entry to <a href="#">251</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 04/06/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/12/2021 | 252                 | MEMORANDUM regarding <a href="#">250</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc.. Motions referred to Magistrate Judge S. Kato Crews                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |



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|            |                     | by Judge William J. Martinez on 3/12/2021. Text Only Entry (wjmssec, ) (Entered: 03/12/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/25/2021 | <a href="#">253</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of ECF 251-1)(Shoaei, Maral) (Entered: 03/25/2021)                                                                                                                                                                                                                                                                                                                                                                               |
| 03/25/2021 | 254                 | MEMORANDUM regarding <a href="#">253</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc.. Motions referred to Magistrate Judge S. Kato Crews by Judge William J. Martinez on 3/25/2021. Text Only Entry (wjmssec, ) (Entered: 03/25/2021)                                                                                                                                                                                                                                                                                                            |
| 03/25/2021 | 255                 | ADVISORY NOTICE TO ATTORNEY AND COURT: Under D.C.COLO.LAttyR 3(a), Jacob A. Bruner was administratively removed from the court's attorney roll and barred from filing electronically under CM/ECF for failing to pay the 2020 Biennial Fee. Counsel must complete a Bar/ECF application through counsel's existing Attorney Services Portal account and pay the full application fee to be restored to the attorney roll and CM/ECF. Upon reinstatement, counsel must file a Notice of Entry of Appearance in this case. (Text Only Entry) (mfred) (Entered: 03/25/2021) |
| 03/29/2021 | <a href="#">256</a> | NOTICE of Entry of Appearance by Jacob A. Bruner on behalf of Titan Manufacturing Solutions, Inc. Attorney Jacob A. Bruner added to party Titan Manufacturing Solutions, Inc.(pty:cd) (Bruner, Jacob) (Entered: 03/29/2021)                                                                                                                                                                                                                                                                                                                                              |
| 04/08/2021 | 259                 | ORDER granting <a href="#">246</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#234 Exhibits 4-5] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 4-8-2021. Text Only Entry (skclc2). (Entered: 04/08/2021)                                                                                                                                                    |
| 04/08/2021 | 260                 | ORDER granting <a href="#">253</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#251-1] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 4-8-2021. Text Only Entry (skclc2). (Entered: 04/08/2021)                                                                                                                                                               |
| 04/08/2021 | 261                 | ORDER granting <a href="#">250</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket No. [#248] retains its Level 1 Restriction. SO ORDERED by Magistrate Judge S. Kato Crews on 4-8-2021. Text Only Entry (skclc2). (Entered: 04/08/2021)                                                                                                                                                                 |
| 07/06/2021 | 262                 | This action is reassigned to Judge Regina M. Rodriguez upon her appointment. Unless otherwise ordered, the dates and times for all previously scheduled matters will be maintained and will now be handled by Judge Rodriguez in Courtroom A-702. Her chambers are located in A-738 of the Alfred A. Arraj Courthouse. Her telephone number is 303-335-2170. All future pleadings should be designated as 19-cv-01749-RMR. Text only entry. (trvo, ) (Entered: 07/06/2021)                                                                                               |
| 08/20/2021 | <a href="#">263</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4)(Tamkin, Gregory) (Entered: 08/20/2021)                                                                                                                                                                                                                                                                                                                       |
| 08/20/2021 | <a href="#">264</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4)(Tamkin, Gregory) (Entered: 08/20/2021)                                                                                                                                                                                                                                                                                                                       |
| 08/20/2021 | 265                 | MOTION to Exclude Opinions of Dan Walter Pursuant to Fed. R. Evid. 702, by Defendant National Cost, Inc. and Counter Claimant National Cost, Inc. (Public Entry to                                                                                                                                                                                                                                                                                                                                                                                                       |



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|            |                     | <a href="#">263</a> Restricted Level 1 Documents) Text Only Entry (angar, ) (Entered: 08/23/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 08/20/2021 | 266                 | MOTION to Exclude "Expert Opinions" and "Expert Testimony" of Brian Lefever Pursuant to Fed. R. Evid. 702, by Defendant National Cost, Inc. and Counter Claimant National Cost, Inc. (Public Entry to <a href="#">264</a> Restricted Level 1 Document) Text Only Entry (angar, ) (Entered: 08/23/2021)                                                                                                                                                                                                                                                                                                                                       |
| 08/27/2021 | <a href="#">267</a> | Unopposed MOTION for Extension of Time to File Response/Reply as to 265 MOTION to Exclude, 266 MOTION to Exclude by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Quiat, Laurin) (Entered: 08/27/2021)                                                                                                                                                                                                                                                                                                                                                                         |
| 09/02/2021 | 268                 | ORDER denying <a href="#">267</a> Plaintiff's Unopposed Motion for Extension of Time to Submit Briefs In Opposition to 265 MOTION to Exclude Expert Opinions of Dan Walter, and 266 MOTION to Exclude Expert Opinions and Expert Testimony of Brian Lefever. SO ORDERED by Judge Regina M Rodriguez on 9/2/2021. Text Only Entry(rmrja) (Entered: 09/02/2021)                                                                                                                                                                                                                                                                                |
| 09/03/2021 | <a href="#">269</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 09/03/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 09/03/2021 | <a href="#">270</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 09/03/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 09/10/2021 | <a href="#">271</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C)(Quiat, Laurin) (Entered: 09/10/2021)                                                                                                                                                                                                                                                                                                                                                                                                            |
| 09/10/2021 | <a href="#">272</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E) (Quiat, Laurin) (Entered: 09/10/2021)                                                                                                                                                                                                                                                                                                                                             |
| 09/10/2021 | 274                 | Plaintiff Titan Manufacturing Solutions, Inc.'s Response to 266 Defendant National Cost, Inc. D/B/A National Tax Group's Motion to Exclude Opinions and Expert Testimony of Brian Lefever Pursuant to Fed. R. Evid. 702, filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry to <a href="#">271</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 09/14/2021)                                                                                                                                                                                                                                                    |
| 09/10/2021 | 275                 | Plaintiff Titan Manufacturing Solutions, Inc.'s Response to 265 Defendant National Cost, Inc. D/B/A National Tax Group's Motion to Exclude Opinions of Dan Walter Pursuant to Fed. R. Evid. 702, filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Public Entry to <a href="#">272</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 09/14/2021)                                                                                                                                                                                                                                                                            |
| 09/13/2021 | 273                 | ORDER granting <a href="#">269</a> and <a href="#">270</a> , Defendant National Cost, Inc.'s Motions for Leave to Restrict. The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, it is ORDERED that the Motions are GRANTED. The Clerk of Court shall ensure that ECF Nos. <a href="#">263</a> and <a href="#">264</a> and their corresponding exhibits, ECF Nos. <a href="#">263</a> -1 through <a href="#">263</a> -4 and <a href="#">264</a> -1 through <a href="#">264</a> -4, retain their Level 1 Restriction, by Judge Regina M Rodriguez on 9/13/2021. Text Only Entry(angar, ) (Entered: 09/13/2021) |
| 09/22/2021 | <a href="#">276</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 09/22/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 09/22/2021 | <a href="#">277</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 09/22/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 09/24/2021 | <a href="#">278</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Tamkin, Gregory) (Entered: 09/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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| 09/24/2021 | <a href="#">279</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2)(Tamkin, Gregory) (Entered: 09/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 09/24/2021 | 282                 | REPLY in Support of 265 Motion to Exclude Opinions of Dan Walter Pursuant to Fed. R. Evid. 702, by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Public Entry to <a href="#">278</a> Restricted Level 1 Document) Text Only Entry (angar, ) (Entered: 09/30/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 09/24/2021 | 283                 | Reply in Support of Motion to Exclude Opinions and Expert Testimony of Brian Lefever Pursuant to Fed. R. Evid. 702 (ECF [264]), filed by Counter Claimant National Cost, Inc., Defendant National Cost, Inc. (Public Entry to <a href="#">279</a> Restricted Level 1 Document) Text Only Entry (angar, ) (Entered: 09/30/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 09/29/2021 | <a href="#">280</a> | MOTION for Hearing/Conference by Defendant National Cost, Inc.. (Shoaiei, Maral) (Entered: 09/29/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 09/30/2021 | 281                 | ORDER granting <a href="#">280</a> Motion for Status Conference. A Status Conference is set for 10/7/2021 at 10:00 AM in Courtroom A 702 before Judge Regina M Rodriguez. Trial counsel MUST be present and prepared to discuss any pending motions. SO ORDERED by Judge Regina M Rodriguez on 9/30/2021. Text Only Entry(rmrja) (Entered: 09/30/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 09/30/2021 | 284                 | ORDER granting <a href="#">276</a> and <a href="#">277</a> . The Court GRANTS Plaintiff Titan Manufacturing Solutions, Inc.'s Unopposed Motion To Restrict Access to Response to Defendant's Motion To Exclude Expert Opinions and Expert Testimony of Brian Lefever Pursuant to Fed. R. Evid. 702, ECF No. 276. The Clerk shall maintain a Level 1 Restriction on Plaintiff Titan Manufacturing Solutions, Inc.'s Response to Defendant National Cost, Inc. d/b/a National Tax Group's Motion To Exclude Expert Opinions and Expert Testimony of Brian Lefever Pursuant to Fed. R. Evid. 702, ECF No. 271, and the exhibits thereto, ECF Nos. 271-1 through 271-3.<br><br>The Court FURTHER GRANTS Plaintiff Titan Manufacturing Solutions, Inc.'s Unopposed Motion To Restrict Access to Response to Defendant's Motion To Exclude Opinions of Dan Walter Pursuant to Fed. R. Evid. 702, ECF No. 277. The Clerk shall maintain a Level 1 Restriction on Plaintiff Titan Manufacturing Solutions, Inc.'s Response to Defendant National Cost, Inc. d/b/a National Tax Group's Motion To Exclude Opinions of Dan Walter Pursuant to Fed. R. Evid. 702, ECF No. 272, and the exhibits thereto, ECF Nos. 272-1 through 272-5. SO ORDERED by Judge Regina M Rodriguez on 9/30/2021. Text Only Entry(rmrja) (Entered: 09/30/2021) |
| 09/30/2021 | <a href="#">285</a> | ORDER: The 281 Order Setting Status Conference on 10/7/2021 is VACATED. A Status Conference is now set for 10/5/2021 at 10:00 AM in Courtroom A 702 before Judge Regina M Rodriguez. Pursuant to the parties' agreement, Mr. Quiat will make himself available via video. Please review the attached Cisco Meeting Instructions and Tips <b>prior</b> to the Conference. If you experience any issues with connecting please contact Courtroom Deputy Stacy Libid at Stacy_Libid@cod.uscourts.gov. SO ORDERED by Judge Regina M Rodriguez on 9/30/2021. Text Only Entry (Attachments: # <a href="#">1</a> Cisco Meeting Tips) (rmrja) (Entered: 09/30/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 10/05/2021 | <a href="#">286</a> | COURTROOM MINUTES for proceedings held before Judge Regina M Rodriguez: Status Conference held on 10/5/2021. Status Report due no later than 10/7/2021. PLEASE SEE ATTACHED MINUTES. Court Reporter: Sarah Mitchell. (slibi, ) (Entered: 10/06/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 10/07/2021 | <a href="#">287</a> | ORDER granting <a href="#">234</a> Defendant/Counter Claimant National Cost, Inc.'s Motion for Leave to File Amended Counterclaims (the "Motion to Amend") by Judge Regina M. Rodriguez on 10/7/2021.(trvo, ) (Entered: 10/07/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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| 10/07/2021 | <a href="#">288</a> | STATUS REPORT by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 10/07/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 10/07/2021 | 289                 | ORDER: Pursuant to the Court's <a href="#">287</a> Order granting <a href="#">234</a> Defendant/Counterclaimant National Cost, Inc.'s Motion for Leave to File Amended Counterclaims, National Cost, Inc. is DIRECTED to re-file its proposed Amended Counterclaims, <a href="#">234</a> -3, as it's operative Amended Counterclaims, no later than 10/13/2021. SO ORDERED by Judge Regina M Rodriguez on 10/7/2021. Text Only Entry (rmrja) (Entered: 10/07/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 10/08/2021 | 290                 | <p>ORDER: Pursuant to the Court's <a href="#">286</a> 10/5/2021 Order, the Parties have filed their <a href="#">288</a> Status Report. The Court appreciates counsel's professionalism and courtesies. The Court ORDERS as follows:</p> <p>The trial currently scheduled to begin on 11/15/2021 is VACATED. The Parties shall contact Chambers at rodriguez_chambers@cod.uscourts.gov on Tuesday, 10/12/2021 to schedule a new trial date, in accordance with RMR Practice Standard V.B. The new trial shall be set for 7 days.</p> <p>The Trial Preparation Conference currently scheduled for 10/29/2021 is VACATED and will be reset in accordance with the Court's trial Practice Standards. See RMR Practice Standard V.C.</p> <p>The Court previously ordered the Parties to attend a settlement conference with Magistrate Judge Crews. However, the Parties mutually agreed to attend private mediation. Therefore, this aspect of the Court's <a href="#">286</a> 10/5/2021 Order is VACATED.</p> <p>The Court has entered <a href="#">287</a> Order granting <a href="#">234</a> National Cost, Inc.'s Motion for Leave to File Amended Counterclaims and 289 Order directing National Cost, Inc. to re-file its proposed Amended Counterclaims as its operative Amended Counterclaims by Wednesday, 10/13/2021. The Parties have represented that Titan intends to answer, rather than file any motion to dismiss. Titan shall file its Answer to the Amended Counterclaims by 10/25/2021.</p> <p>The Parties have filed 211 212 motions for partial summary judgment. These motions are DENIED WITHOUT PREJUDICE. The Parties shall file any renewed motions no later than 11/1/2021. Responses and replies shall be filed in accordance with the deadlines set forth in D.C.COLO.LCivRs 7.1(d) and 56.1(a). Because this matter was 262 reassigned to Judge Rodriguez from Judge Martinez, these motions may be filed consistent with Judge Martinez's Practice Standards.</p> <p>Plaintiff Titan did not request a jury trial on its claims. Counterclaimant National Cost, Inc. did request a jury trial on its counterclaims. The Parties shall file briefs to address the issues regarding the right to a jury trial, use of an advisory jury, and proposals regarding each party's position for trial process and procedure. The Parties shall file simultaneous opening briefs of no more than 10 pages, on or before 11/9/2021, and the Parties shall file response briefs of no more than 5 pages, on or before 11/24/2021. No reply briefs shall be submitted.</p> <p>National Cost, Inc. has filed 265 266 motions to exclude under Federal Rule of Evidence 702. These motions are DENIED WITHOUT PREJUDICE. The Parties shall re-file any Rule 702 Motions on or before 1/10/2022; response briefs on or before 1/17/2022; and replies on or before 1/24/2022. Motions in limine and other pre-trial deadlines shall be set in accordance with this Court's Rules and Practice Standards once a new trial date is established. SO ORDERED by Judge Regina M Rodriguez on 10/8/2021. Text Only Entry(rmrja) (Entered: 10/08/2021)</p> |

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| 10/08/2021 | <a href="#">291</a> | Amended COUNTERCLAIM against Titan Manufacturing Solutions, Inc., filed by National Cost, Inc..(Tamkin, Gregory) (Entered: 10/08/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 10/14/2021 | <a href="#">292</a> | ORDER SETTING JURY TRIAL AND TRIAL PREPARATION CONFERENCE: This matter has been scheduled for a seven-day Jury Trial on the docket of Judge Regina M. Rodriguez in the U.S. District Courthouse, Courtroom A702, 7th Floor, 901 19th Street, Denver, Colorado, to commence on March 14, 2022 at 9:00 AM. A Trial Preparation Conference is set for January 31, 2022 at 3:30 PM. PLEASE READ ATTACHED ORDER. SO ORDERED by Judge Regina M Rodriguez on 10/14/2021. Text Only Entry (rmrja) (Entered: 10/14/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 10/19/2021 | <a href="#">293</a> | TRANSCRIPT of Status Conference held on October 5, 2021 before Judge Rodriguez. Pages: 1-49.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (smite, ) (Entered: 10/19/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 10/25/2021 | <a href="#">294</a> | <i>Plaintiff Titan Manufacturing Solutions</i> ANSWER/REPLY to <a href="#">291</a> Counterclaim and Affirmative Defenses by Titan Manufacturing Solutions, Inc..(Quiat, Laurin) (Entered: 10/25/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 11/01/2021 | <a href="#">295</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Declaration of Maral Shoaee in Support of National Cost, Inc.'s Motion for Partial Summary Judgment, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5, # <a href="#">7</a> Exhibit 6, # <a href="#">8</a> Exhibit 7, # <a href="#">9</a> Exhibit 8, # <a href="#">10</a> Exhibit 9, # <a href="#">11</a> Exhibit 10, # <a href="#">12</a> Exhibit 11, # <a href="#">13</a> Exhibit 12, # <a href="#">14</a> Exhibit 13, # <a href="#">15</a> Exhibit 14, # <a href="#">16</a> Exhibit 15, # <a href="#">17</a> Exhibit 16, # <a href="#">18</a> Exhibit 17, # <a href="#">19</a> Exhibit 18, # <a href="#">20</a> Exhibit 19, # <a href="#">21</a> Exhibit 20, # <a href="#">22</a> Exhibit 21, # <a href="#">23</a> Exhibit 22, # <a href="#">24</a> Exhibit 23, # <a href="#">25</a> Exhibit 24, # <a href="#">26</a> Exhibit 25, # <a href="#">27</a> Exhibit 26, # <a href="#">28</a> Exhibit 27, # <a href="#">29</a> Exhibit 28, # <a href="#">30</a> Exhibit 29, # <a href="#">31</a> Exhibit 30, # <a href="#">32</a> Exhibit 31, # <a href="#">33</a> Exhibit 32, # <a href="#">34</a> Exhibit 33, # <a href="#">35</a> Exhibit 34, # <a href="#">36</a> Exhibit 35, # <a href="#">37</a> Exhibit 36, # <a href="#">38</a> Exhibit 37)(Tamkin, Gregory) (Entered: 11/01/2021) |
| 11/01/2021 | <a href="#">296</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J, # <a href="#">11</a> Exhibit K, # <a href="#">12</a> Exhibit L, # <a href="#">13</a> Exhibit M, # <a href="#">14</a> Exhibit N, # <a href="#">15</a> Exhibit O, # <a href="#">16</a> Exhibit P, # <a href="#">17</a> Exhibit Q, # <a href="#">18</a> Exhibit R, # <a href="#">19</a> Exhibit S, # <a href="#">20</a> Exhibit T, # <a href="#">21</a> Exhibit U, # <a href="#">22</a> Exhibit V, # <a href="#">23</a> Exhibit W, # <a href="#">24</a> Exhibit X, # <a href="#">25</a> Exhibit Y, # <a href="#">26</a> Exhibit Z, # <a href="#">27</a> Exhibit AA, # <a href="#">28</a> Exhibit BB, # <a href="#">29</a> Exhibit CC, # <a href="#">30</a> Exhibit DD, # <a href="#">31</a> Exhibit EE, # <a href="#">32</a> Exhibit FF, # <a href="#">33</a> Exhibit GG, # <a href="#">34</a> Exhibit HH)(Quiat, Laurin) (Entered: 11/01/2021)                                                                                                                                                                                                                                 |
| 11/01/2021 | 297                 | National Cost, Inc.'s Motion for Partial Summary Judgment, by Defendant National Cost, Inc. (Public Entry to <a href="#">295</a> Restricted Level 1) - Text Only Entry (angar, ) (Entered: 11/02/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 11/01/2021 | 298                 | Plaintiff Titan Manufacturing Solutions, Inc.'s Re-filed Fed. R. Civ. P. 56 Motion for Partial Summary Judgment, by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry to <a href="#">296</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 11/02/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 11/09/2021 | <a href="#">299</a> | BRIEF in Support of Holding a Jury Trial Concerning Titan's Affirmative Claims Pursuant to Fed. R. Civ. P. 38 and 39(b) by Plaintiff Titan Manufacturing Solutions, Inc.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |



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|            |                     | (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G)(Quiat, Laurin) Modified on 1/4/2022 to correct event (athom, ). (Entered: 11/09/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 11/09/2021 | <a href="#">300</a> | BRIEF <i>Regarding Jury Trial Issues</i> by Defendant National Cost, Inc. (Tamkin, Gregory) Modified on 1/4/2022 to correct event (athom, ). (Entered: 11/09/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 11/15/2021 | <a href="#">301</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of Dk. No. 295)(Shoaei, Maral) (Entered: 11/15/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 11/15/2021 | <a href="#">302</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 11/15/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 11/18/2021 | 303                 | ORDER granting <a href="#">301</a> Defendant's Unopposed Motion for Leave to Restrict. The Court finds that the requirements of D.C.COLO.LCivR 7.2(c) have been met. Accordingly, it is ORDERED that the Clerk of Court shall ensure that <a href="#">295</a> National Tax's Motion for Partial Summary Judgment and its exhibits shall retain Level 1 restriction. SO ORDERED by Judge Regina M Rodriguez on 11/18/2021. Text Only Entry(rmrja) (Entered: 11/18/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 11/18/2021 | 304                 | ORDER granting <a href="#">302</a> Plaintiff's Unopposed Motion for Leave to Restrict. The Court finds that the requirements of D.C.COLO.LCivR 7.2(c) have been met. Accordingly, it is ORDERED that the Clerk of Court shall ensure that <a href="#">296</a> Titan's Re-Filed Motion for Partial Summary Judgment and its exhibits shall retain Level 1 restriction. SO ORDERED by Judge Regina M Rodriguez on 11/18/2021. Text Only Entry(rmrja) (Entered: 11/18/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 11/22/2021 | <a href="#">305</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6, # <a href="#">7</a> Exhibit 7, # <a href="#">8</a> Exhibit 8, # <a href="#">9</a> Exhibit 9, # <a href="#">10</a> Exhibit 10, # <a href="#">11</a> Exhibit 11, # <a href="#">12</a> Exhibit 12, # <a href="#">13</a> Exhibit 13, # <a href="#">14</a> Exhibit 14, # <a href="#">15</a> Exhibit 15, # <a href="#">16</a> Exhibit 16, # <a href="#">17</a> Exhibit 17, # <a href="#">18</a> Exhibit 18, # <a href="#">19</a> Exhibit 19, # <a href="#">20</a> Exhibit 20, # <a href="#">21</a> Exhibit 21, # <a href="#">22</a> Exhibit 22, # <a href="#">23</a> Exhibit 23, # <a href="#">24</a> Exhibit 24)(Tamkin, Gregory) (Entered: 11/22/2021) |
| 11/22/2021 | <a href="#">306</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J, # <a href="#">11</a> Exhibit K, # <a href="#">12</a> Exhibit L, # <a href="#">13</a> Exhibit M, # <a href="#">14</a> Exhibit N, # <a href="#">15</a> Exhibit O)(Quiat, Laurin) (Entered: 11/22/2021)                                                                                                                                                                                                                                                                                                  |
| 11/22/2021 | 307                 | National Cost, Inc.'s Response in Opposition to Titan Manufacturing Solutions, Inc.'s Re-Filed 298 Motion for Partial Summary Judgment, filed by Defendant National Cost, Inc. (Public Entry to <a href="#">305</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 11/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 11/22/2021 | 308                 | Titan's Re-Filed Brief in Opposition to National Cost, Inc.'s 297 Motion for Partial Summary Judgment, Defendants Titan Manufacturing Solutions, Inc., Titan Manufacturing Solutions, Inc. (Public Entry to <a href="#">306</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 11/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 11/24/2021 | <a href="#">309</a> | BRIEF re <a href="#">300</a> Brief <i>in Response to National Tax's Opening Brief Regarding Jury Trial Issues</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 11/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 11/24/2021 | <a href="#">310</a> | RESPONSE to <a href="#">299</a> Brief, <i>Regarding Jury Trial Issues</i> by Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 11/24/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 12/06/2021 | <a href="#">311</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 12/06/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |



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| 12/06/2021 | <a href="#">312</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E, # <a href="#">6</a> Exhibit F, # <a href="#">7</a> Exhibit G, # <a href="#">8</a> Exhibit H, # <a href="#">9</a> Exhibit I, # <a href="#">10</a> Exhibit J, # <a href="#">11</a> Exhibit K, # <a href="#">12</a> Exhibit L, # <a href="#">13</a> Exhibit M, # <a href="#">14</a> Exhibit N, # <a href="#">15</a> Exhibit O, # <a href="#">16</a> Exhibit P, # <a href="#">17</a> Exhibit Q)(Quiat, Laurin) (Entered: 12/06/2021) |
| 12/06/2021 | <a href="#">313</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of Dk. No. 305)(Shoaei, Maral) (Entered: 12/06/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 12/06/2021 | <a href="#">314</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Tamkin, Gregory) (Entered: 12/06/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 12/06/2021 | 316                 | Plaintiff Titan Manufacturing Solutions, Inc.'s Re-Filed Reply in Support of Motion for Partial Summary Judgment, filed by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry to <a href="#">312</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 12/08/2021)                                                                                                                                                                                                                                                                                                                                                                                                           |
| 12/06/2021 | 317                 | National Cost, Inc.'s Reply in Support of 297 Motion for Partial Summary Judgment, filed by Defendant National Cost, Inc. (Public Entry to <a href="#">314</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 12/08/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 12/07/2021 | 315                 | MEMORANDUM regarding <a href="#">311</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc., <a href="#">313</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc. Motions referred to Magistrate Judge S. Kato Crews. By Judge Regina M Rodriguez on 12/7/2021. Text Only Entry (rmrja) (Entered: 12/07/2021)                                                                                                                                                                                                                                                                                                                           |
| 12/20/2021 | <a href="#">318</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 12/20/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 12/20/2021 | <a href="#">319</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Redacted Version of Dk. No. 314)(Shoaei, Maral) (Entered: 12/20/2021)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 12/22/2021 | 320                 | ORDER granting <a href="#">311</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket Nos. [#306] and [#306-1] through [#306-15] retain their Level 1 Restrictions. SO ORDERED by Magistrate Judge S. Kato Crews on 12-22-2021. Text Only Entry (skclc2). (Entered: 12/22/2021)                                                                                                                                                                                                                                                |
| 12/22/2021 | 321                 | ORDER granting <a href="#">313</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket Nos. [#305] and [#305-1] through [#305-26] retain their Level 1 Restrictions. SO ORDERED by Magistrate Judge S. Kato Crews on 12-22-2021. Text Only Entry (skclc2). (Entered: 12/22/2021)                                                                                                                                                                                                                                                |
| 12/22/2021 | 322                 | MEMORANDUM regarding <a href="#">319</a> Unopposed MOTION for Leave to Restrict filed by National Cost, Inc., <a href="#">318</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc. Motions referred to Magistrate Judge S. Kato Crews. By Judge Regina M Rodriguez on 12/22/2021. Text Only Entry (rmrja) (Entered: 12/22/2021)                                                                                                                                                                                                                                                                                                                          |
| 01/06/2022 | 323                 | ORDER granting <a href="#">318</a> Motion for Leave to Restrict and <a href="#">319</a> Unopposed MOTION for Leave to Restrict. The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket Nos. [#312], [#312-1] through [#312-17], and [#314] retain their Level 1 Restrictions. SO ORDERED by Magistrate Judge S. Kato Crews on 1-6-2022. Text Only Entry (skclc2). (Entered: 01/06/2022)                                                                                                                                                                                  |

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| 01/10/2022 | <a href="#">324</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4)(Tamkin, Gregory) (Entered: 01/10/2022)                                                                                                                                             |
| 01/10/2022 | <a href="#">325</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4)(Tamkin, Gregory) (Entered: 01/10/2022)                                                                                                                                             |
| 01/10/2022 | 326                 | MOTION to Exclude Opinions of Dan Walter Pursuant to Fed.R.Evid.702 by Defendant National Cost, Inc. (Public Entry for Level 1 Restricted Document <a href="#">324</a> ). Text Only Entry (athom, ) (Entered: 01/10/2022)                                                                                                                                                                      |
| 01/10/2022 | 327                 | MOTION to Exclude "Expert Opinions" and "Expert Testimony" of Brian Lefever Pursuant to Fed.R.Evid.702 by Defendant National Cost, Inc. (Public Entry for Level 1 Restricted Document <a href="#">325</a> ) Text Only Entry (athom, ) (Entered: 01/10/2022)                                                                                                                                    |
| 01/17/2022 | <a href="#">328</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E) (Quiat, Laurin) (Entered: 01/17/2022)                                                                                               |
| 01/17/2022 | <a href="#">329</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C)(Quiat, Laurin) (Entered: 01/17/2022)                                                                                                                                                              |
| 01/17/2022 | 330                 | RESPONSE to 326 MOTION to Exclude Opinions of Dan Walter Pursuant to Fed.R.Evid.702 filed by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry for Level 1 Restricted Document <a href="#">328</a> ). Text Only Entry (athom, ) (Entered: 01/19/2022)                                                                                                                                |
| 01/17/2022 | 331                 | RESPONSE to 327 MOTION to Exclude "Expert Opinions" and "Expert Testimony" of Brian Lefever Pursuant to Fed.R.Evid.702 filed by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry for Level 1 Restricted Document <a href="#">329</a> ). Text Only Entry (athom, ) (Entered: 01/19/2022)                                                                                             |
| 01/21/2022 | <a href="#">332</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Tamkin, Gregory) (Entered: 01/21/2022)                                                                                                                                                                                                                                                                                      |
| 01/21/2022 | <a href="#">333</a> | RESTRICTED DOCUMENT - Level 1: by Defendant National Cost, Inc... (Attachments: # <a href="#">1</a> Exhibit 1 - Lefever Depo Transcript Excerpt, # <a href="#">2</a> Exhibit 2 - Jones Depo Transcript Excerpt)(Tamkin, Gregory) (Entered: 01/21/2022)                                                                                                                                         |
| 01/21/2022 | <a href="#">334</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 01/21/2022)                                                                                                                                                                                                                                                                                 |
| 01/21/2022 | <a href="#">335</a> | Unopposed MOTION for Leave to Restrict by Defendant National Cost, Inc.. (Shoaei, Maral) (Entered: 01/21/2022)                                                                                                                                                                                                                                                                                 |
| 01/21/2022 | 344                 | Reply in Support of 326 Motion to Exclude Opinions of Dan Walters Pursuant to Fed. R. Evid. 702, filed by Defendant National Cost, Inc. (Public Entry to <a href="#">332</a> Restricted Level 1) Text Only Entry (angar, ) (Entered: 02/01/2022)                                                                                                                                               |
| 01/21/2022 | 345                 | Reply to 327 Motion to Exclude "Expert Opinions" and "Expert Testimony" of Brian Lefever Pursuant to Fed. R. Evid. 702, filed by Defendant National Cost, Inc. (Public Entry to <a href="#">333</a> Restricted Level 1) Text Only Entry. (angar, ) (Entered: 02/01/2022)                                                                                                                       |
| 01/24/2022 | 336                 | ORDER granting <a href="#">334</a> Unopposed MOTION for Leave to Restrict. National Tax is GRANTED leave to retain a Level 1 restriction to its Motion and exhibits. The Clerk of the Court is DIRECTED to retain a level 1 restriction to <a href="#">324</a> and <a href="#">324</a> 1-4. SO ORDERED by Judge Regina M. Rodriguez on 1/24/2022. Text Only Entry(rmrja) (Entered: 01/24/2022) |

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| 01/24/2022 | 337                 | ORDER granting <a href="#">335</a> Unopposed MOTION for Leave to Restrict. National Cost is GRANTED leave to retain a Level 1 restriction to its Motion and exhibits. The Clerk of the Court is DIRECTED to retain a Level 1 restriction to <a href="#">325</a> and <a href="#">325</a> 1-4. SO ORDERED by Judge Regina M. Rodriguez on 1/24/2022. Text Only Entry(rmrja) (Entered: 01/24/2022)                                                                                                                                                                                                                        |
| 01/27/2022 | <a href="#">338</a> | ORDER. The Court GRANTS Titan's request for a jury trial, ECF No. <a href="#">299</a> , on its affirmative claims. To the extent any party maintains that the equitable claims should be tried to the Court, that party may make a motion, and the Court shall exercise its discretion to ask the jury for an advisory verdict on those claims, ORDERED by Judge Regina M. Rodriguez on 1/27/2022.(angar, ) (Entered: 01/27/2022)                                                                                                                                                                                      |
| 01/28/2022 | <a href="#">339</a> | NOTICE re <a href="#">296</a> Restricted Document - Level 1,, <i>of Correction</i> by Plaintiff Titan Manufacturing Solutions, Inc. (Quiat, Laurin) (Entered: 01/28/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 01/28/2022 | <a href="#">340</a> | RESTRICTED DOCUMENT - Level 1: by Plaintiff Titan Manufacturing Solutions, Inc... (Attachments: # <a href="#">1</a> Exhibit JJ, # <a href="#">2</a> Exhibit KK, # <a href="#">3</a> Exhibit LL, # <a href="#">4</a> Exhibit MM)(Quiat, Laurin) (Entered: 01/28/2022)                                                                                                                                                                                                                                                                                                                                                   |
| 01/28/2022 | 346                 | Reply in Support of 327 Motion to Exclude "Expert Opinions" and "Expert Testimony" of Brian Lefever Pursuant to Fed. R. Evid. 702, filed by Plaintiff Titan Manufacturing Solutions, Inc. (Public Entry to <a href="#">340</a> Restricted Level 1) Text Only Entry. (angar, ) (Entered: 02/01/2022)                                                                                                                                                                                                                                                                                                                    |
| 01/31/2022 | <a href="#">341</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 01/31/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 01/31/2022 | <a href="#">342</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A)(Quiat, Laurin) (Entered: 01/31/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 01/31/2022 | 343                 | MEMORANDUM regarding <a href="#">341</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc., <a href="#">342</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc. Motions referred to Magistrate Judge S. Kato Crews. By Judge Regina M. Rodriguez on 1/31/2022. Text Only Entry (rmrja) (Entered: 01/31/2022)                                                                                                                                                                                                                                     |
| 01/31/2022 | <a href="#">347</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Trial Preparation Conference held on 1/31/2022. ORDERED: Parties shall meet and confer and resubmit an amended witness list, amended exhibit list, jury instructions, and witness deposition designations no later than February 14, 2022. ORDERED: Plaintiff's Oral Motion for Sequestration of Witnesses, with no objection from the Defendant, is GRANTED. Witnesses will be sequestered. The Parties shall advise their witnesses in advance that they will be sequestered. Court Reporter: Terri Lindblom. (slibi) (Entered: 02/01/2022) |
| 02/02/2022 | 348                 | ORDER granting <a href="#">341</a> and <a href="#">342</a> <i>Motion for Leave to Restrict</i> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motions are GRANTED. The Clerk of Court shall ensure that Docket Nos. [#329], [#329-1] through [#329-3], [#328] and [#328-1] through [#328-5] retain their Level 1 Restrictions. SO ORDERED by Magistrate Judge S. Kato Crews on 2-2-2022. Text Only Entry (skclc2). (Entered: 02/02/2022)                                                                                                                 |
| 02/04/2022 | <a href="#">349</a> | Unopposed MOTION to Exclude <i>Opinions Dan Walter</i> by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1 - Reply ISO Mot Exclude Walter)(Shoaei, Maral) (Entered: 02/04/2022)                                                                                                                                                                                                                                                                                                                                                                        |
| 02/04/2022 | <a href="#">350</a> | Unopposed MOTION to Exclude <i>Expert Opinion/Testimony Brian Lefever</i> by Counter Claimant National Cost, Inc., Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit 1                                                                                                                                                                                                                                                                                                                                                                                                                          |

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|            |                     | - Reply ISO Mot Exclude Lefever)(Shoaei, Maral) (Entered: 02/04/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 02/04/2022 | 351                 | MEMORANDUM regarding <a href="#">349</a> Unopposed MOTION to Exclude <i>Opinions Dan Walter</i> filed by National Cost, Inc., <a href="#">350</a> Unopposed MOTION to Exclude <i>Expert Opinion/Testimony Brian Lefever</i> filed by National Cost, Inc. Motions referred to Magistrate Judge S. Kato Crews. By Judge Regina M. Rodriguez on 2/4/2022. Text Only Entry (rmrja) (Entered: 02/04/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 02/09/2022 | <a href="#">352</a> | ORDER. The Court GRANTS IN PART and DENIES IN PART Titan's Motion for Partial Summary Judgment, ECF No. <a href="#">296</a> , and it DENIES National Taxs Motion for Partial Summary Judgment, ECF No. <a href="#">295</a> . ORDERED by Judge Regina M. Rodriguez on 2/9/2022.(angar, ) (Entered: 02/09/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 02/11/2022 | <a href="#">353</a> | Unopposed MOTION for Leave to Restrict by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 02/11/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 02/14/2022 | 354                 | MEMORANDUM regarding <a href="#">353</a> Unopposed MOTION for Leave to Restrict filed by Titan Manufacturing Solutions, Inc. Motion referred to Magistrate Judge S. Kato Crews. By Judge Regina M. Rodriguez on 2/14/2022. Text Only Entry (rmrja) (Entered: 02/14/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 02/24/2022 | 355                 | ORDER granting <a href="#">349</a> and <a href="#">350</a> Motions for Leave to Restrict. As an initial matter, the Court notes these Motions are titled Unopposed Motions to Exclude but are in facts motions seeking level 1 restriction on previously filed opposed motions to exclude.<br><br>Regarding Defendant's motions to restrict, the Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motions are GRANTED. The Clerk of Court shall ensure that Docket Nos. [#332], [#333], and [#333-1] through [#333-2] retain their Level 1 Restrictions. SO ORDERED by Magistrate Judge S. Kato Crews on 2-24-2022. Text Only Entry (sklc2, ) (Entered: 02/24/2022)                                                                                                                 |
| 02/24/2022 | 356                 | ORDER granting <a href="#">353</a> Motion for Leave to Restrict <a href="#">353</a> . The Court finds the requirements of D.C.COLO.LCivR 7.2(c) have been met. Therefore, IT IS ORDERED that the Motion is GRANTED. The Clerk of Court shall ensure that Docket Nos. [#340] and [#340-1] through [#340-4] retain their Level 1 Restrictions. SO ORDERED by Magistrate Judge S. Kato Crews on 2-24-2022. Text Only Entry (sklc2). (Entered: 02/24/2022)                                                                                                                                                                                                                                                                                                                                                                                    |
| 02/24/2022 | <a href="#">357</a> | ORDER SETTING STATUS CONFERENCE. A Status Conference is set for 2/28/2022 at 10:00 AM in Courtroom A 702 before Judge Regina M. Rodriguez. The parties should be prepared to discuss the pending motions to exclude expert testimony, the remaining disputes regarding the jury instructions, and any further issues that the parties would like to raise to the Court prior to trial. This Conference will be held via Video Teleconference. The parties are to familiarize themselves with the attached Instructions and Tips. Should counsel experience any connectivity issues, please contact Courtroom Deputy Stacy Libid at stacy_libid@cod.uscourts.gov <u>prior</u> to the Conference. SO ORDERED by Judge Regina M. Rodriguez on 2/24/2022. (Attachments: # <a href="#">1</a> Cisco Meeting Tips) (rmrja) (Entered: 02/24/2022) |
| 02/25/2022 | <a href="#">358</a> | ORDER regarding Amended Joint Statement of Deposition Designations and Objections. By Judge Regina M. Rodriguez on 2/25/2022. (rmrja) (Entered: 02/25/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 02/28/2022 | <a href="#">359</a> | Unopposed MOTION for Order to <i>Allow Remote Video Testimony of Jim Myers</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 02/28/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 02/28/2022 | <a href="#">360</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Status Conference held on 2/28/2022. ORDERED: Denying in part and taking under advisement in part 326 Defendant/Counterclaim Plaintiff's Motion to Exclude Opinions of                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |



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|            |                     | Dan Walter Pursuant to Fed.R.Evid. 702. ORDERED: Granting in part and denying in part 327 Defendant/Counterclaim Plaintiff's Motion to Exclude "Expert Opinions" and "Expert Testimony" of Brian Lefever Pursuant to Fed.R.Evid. 702. ORDERED: Defendant/Counterclaim Plaintiff's oral motion to continue trial is DENIED. ORDERED: The jury instructions shall be TAKEN UNDER ADVISEMENT until trial. Court Reporter: Terri Lindblom. (slibi, ) (Main Document 360 replaced on 3/2/2022) (slibi, ). Modified on 3/2/2022 to edit text (slibi, ). (Entered: 03/01/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/02/2022 | <a href="#">361</a> | ORDER denying 326 Motion to Exclude Opinions of Dan Walter Pursuant to Fed.R.Evid. 702. SO ORDERED by Judge Regina M. Rodriguez on 3/2/2022. Text Only Entry(rmrja) (Entered: 03/02/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/02/2022 | 362                 | ORDER granting <a href="#">359</a> Plaintiff Titan Manufacturing Solutions, Inc.'s Unopposed Motion to Allow Remote Video Testimony of Jim Myers. Pursuant to RMR Practice Standard III.B.1., Plaintiff moves, unopposed, to allow its potential supporting witness, Jim Myers, the principal of GTM Architects, to testify at trial via remote videoconferencing, if testimony from Mr. Myers will be necessary. RMR Practice Standard III.B.1. provides that the undersigned is "generally amenable to allowing video testimony" and that "[a] request for presentation of testimony by telephone or video conference shall be made by written motion or stipulation filed at least 7 days before the trial or hearing at which testimony is proposed to be taken by telephone or video conference." The Court finds that Plaintiff's motion complies with this Practice Standard and GRANTS the motion. The parties are reminded that it is their responsibility to ensure that the technology for the videoconferencing functions appropriately, and the Court will not prolong or delay the trial for technical difficulties. See RMR Practice Standard III.E.1. SO ORDERED by Judge Regina M. Rodriguez on 3/2/2022. Text Only Entry(rmrja) (Entered: 03/02/2022)                                             |
| 03/03/2022 | <a href="#">363</a> | Unopposed MOTION for Order to <i>Allow the Remote Video Testimony of Stephanie Reynoso and Melinda Harper</i> by Counter Claimants National Cost, Inc., National Cost, Inc., Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 03/03/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 03/04/2022 | 364                 | ORDER granting <a href="#">363</a> National Cost, Inc.'s Unopposed Motion to Allow the Remote Video Testimony of Stephanie Reynoso and Melinda Harper. Pursuant to RMR Practice Standard III.B.1., Defendant moves, unopposed, to allow Ms. Stephanie Reynoso, Defendant's Director of Operations during the relevant times at issue in this lawsuit, and Ms. Melinda Harper, Defendant's affirmative and rebuttal damages expert, to testify at trial via remote means. RMR Practice Standard III.B.1 provides that the undersigned is "generally amenable to allowing video testimony" and that "[a] request for presentation of testimony by telephone or video conference shall be made by written motion or stipulation filed at least 7 days before the trial or hearing at which testimony is proposed to be taken by telephone conference." The Court finds that Defendant's motion complies with this Practice Standard and GRANTS the motion. The parties are reminded that it is their responsibility to ensure that the technology for the remote testimony functions appropriately, and the Court will not prolong or delay the trial for technical difficulties. See RMR Practice Standard III.E.1. SO ORDERED by Judge Regina M. Rodriguez on 3/4/2022. Text Only Entry(rmrja) (Entered: 03/04/2022) |
| 03/10/2022 | <a href="#">365</a> | Witness List by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 03/10/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 03/10/2022 | <a href="#">366</a> | Exhibit List by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 03/10/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 03/13/2022 | <a href="#">367</a> | TRIAL BRIEF by Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 03/13/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |



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| 03/14/2022 | <a href="#">368</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day One held on 3/14/2022. Court Reporter: Terri Lindblom. (slibi) (Entered: 03/14/2022)                                                           |
| 03/14/2022 | <a href="#">369</a> | Stipulation and ORDER Regarding Custody of Exhibits and Depositions, by Judge Regina M. Rodriguez on 3/14/2022. (slibi, ) (Entered: 03/14/2022)                                                                                          |
| 03/14/2022 | <a href="#">370</a> | RESTRICTED DOCUMENT - Level 3: Jury Strike Sheet - Unredacted. (slibi) (Entered: 03/14/2022)                                                                                                                                             |
| 03/14/2022 | <a href="#">371</a> | Jury Strike Sheet with juror names redacted. (slibi) (Entered: 03/14/2022)                                                                                                                                                               |
| 03/15/2022 | <a href="#">372</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day Two held on 3/15/2022. Court Reporter: Terri Lindblom. (slibi) (Entered: 03/15/2022)                                                           |
| 03/16/2022 | <a href="#">373</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day Three held on 3/16/2022. Court Reporter: Terri Lindblom. (slibi) (Entered: 03/16/2022)                                                         |
| 03/16/2022 | <a href="#">374</a> | BRIEF <i>on Authenticity of Purported License Agreements</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso, Counter Claimants National Cost, Inc., National Cost, Inc.. (Tamkin, Gregory) (Entered: 03/16/2022)        |
| 03/17/2022 | <a href="#">375</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day Four held on 3/17/2022. Court Reporter: Terri Lindblom. (slibi) (Entered: 03/17/2022)                                                          |
| 03/18/2022 | <a href="#">376</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day Five held on 3/18/2022. Court Reporter: Terri Lindblom. (slibi) (Entered: 03/18/2022)                                                          |
| 03/21/2022 | 377                 | MINUTE ORDER by Judge Regina M. Rodriguez on 3/21/2022. The Clerk of Court shall provide lunch to the jury for the duration of their deliberations commencing on Monday, March 21, 2022. Text Only Entry (slibi, ) (Entered: 03/21/2022) |
| 03/21/2022 | <a href="#">378</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day Six held on 3/21/2022. Court Reporter: Terri Lindblom. (slibi) (Entered: 03/22/2022)                                                           |
| 03/21/2022 | <a href="#">379</a> | Jury Question One.(slibi) (Entered: 03/22/2022)                                                                                                                                                                                          |
| 03/21/2022 | <a href="#">380</a> | Jury Question One - Unredacted - Level 3 - Viewable by Court Only. (slibi, ) (Entered: 03/22/2022)                                                                                                                                       |
| 03/21/2022 | <a href="#">381</a> | Jury Question Two. (slibi) (Entered: 03/22/2022)                                                                                                                                                                                         |
| 03/21/2022 | <a href="#">382</a> | Jury Question Two - Unredacted - Level 3 - Viewable by Court Only. (slibi) (Entered: 03/22/2022)                                                                                                                                         |
| 03/21/2022 | <a href="#">383</a> | Jury Instructions. (slibi) (Entered: 03/22/2022)                                                                                                                                                                                         |
| 03/21/2022 | <a href="#">388</a> | Refused Proposed Verdict Form by Plaintiff Titan Manufacturing Solutions, Inc. (slibi) (Entered: 03/22/2022)                                                                                                                             |
| 03/21/2022 | <a href="#">389</a> | Refused Proposed Jury Instructions. (slibi) (Entered: 03/22/2022)                                                                                                                                                                        |
| 03/22/2022 | <a href="#">384</a> | Jury Question Three. (slibi) (Entered: 03/22/2022)                                                                                                                                                                                       |
| 03/22/2022 | <a href="#">385</a> | Jury Question Three - Unredacted - Level 3 - Viewable by Court Only. (slibi) (Entered: 03/22/2022)                                                                                                                                       |

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| 03/22/2022 | <a href="#">386</a> | Jury Question Four. (slibi) (Entered: 03/22/2022)                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/22/2022 | <a href="#">387</a> | Jury Question Four - Unredacted - Level 3 - Viewable by Court Only. (slibi) (Entered: 03/22/2022)                                                                                                                                                                                                                                                                                                                                                                              |
| 03/22/2022 | 390                 | MINUTE ORDER by Judge Regina M. Rodriguez on 3/22/2022. The Clerk of Court shall provide lunch to the jury for the duration of their deliberations commencing on Monday, March 22, 2022. Text Only Entry (slibi) (Entered: 03/22/2022)                                                                                                                                                                                                                                         |
| 03/22/2022 | <a href="#">391</a> | COURTROOM MINUTES for proceedings held before Judge Regina M. Rodriguez: Jury Trial - Day Seven held on 3/22/2022. JURY VERDICT. Court Reporter: Sarah Mitchell. (slibi) (Entered: 03/23/2022)                                                                                                                                                                                                                                                                                 |
| 03/22/2022 | <a href="#">392</a> | Jury Note. (slibi) (Entered: 03/23/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 03/22/2022 | <a href="#">393</a> | Jury Note - Unredacted - Level 3 - Viewable by Court Only. (slibi) (Entered: 03/23/2022)                                                                                                                                                                                                                                                                                                                                                                                       |
| 03/22/2022 | <a href="#">394</a> | JURY VERDICT. (slibi) (Entered: 03/23/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 03/22/2022 | <a href="#">395</a> | Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (slibi) (Entered: 03/23/2022)                                                                                                                                                                                                                                                                                                                                                                                    |
| 03/25/2022 | 396                 | ORDER SETTING STATUS CONFERENCE. Status Conference set for <b>4/13/2022 at 10:00 AM</b> in Courtroom A 702 before Judge Regina M. Rodriguez. SO ORDERED by Judge Regina M. Rodriguez on 3/25/2022. Text Only Entry (rmrja) (Entered: 03/25/2022)                                                                                                                                                                                                                               |
| 03/31/2022 | 397                 | ORDER: The Status Conference previously set for April 13, 2022 at 10:00 AM is VACATED and RESET for 4/18/2022 at 10:00 AM in Courtroom A 702 before Judge Regina M. Rodriguez. SO ORDERED by Judge Regina M. Rodriguez on 3/31/2022. Text Only Entry (rmrja) (Entered: 03/31/2022)                                                                                                                                                                                             |
| 04/05/2022 | <a href="#">398</a> | Proposed Bill of Costs by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Summary of Costs, # <a href="#">2</a> Exhibit 1 - Service of Process, # <a href="#">3</a> Exhibit 2 - Fees of the Court Reporter, # <a href="#">4</a> Exhibit 3 - Fees for exemplification and copies, # <a href="#">5</a> Exhibit 4 - Docket Fees, # <a href="#">6</a> Exhibit 5 - Costs Incident to Depositions)(Quiat, Laurin) (Entered: 04/05/2022) |
| 04/05/2022 | <a href="#">399</a> | Costs Taxed in amount of \$ \$0.00. Proposed Bill of Costs denied without prejudice pursuant to LCivR 54.1 as there as not been a final order or judgment entered in the case. (ashee) (Entered: 04/05/2022)                                                                                                                                                                                                                                                                   |
| 04/12/2022 | <a href="#">400</a> | STATEMENT <i>Joint Statement Regarding Proposed Order of Final Judgment</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Proposed Order (PDF Only))(Quiat, Laurin) (Entered: 04/12/2022)                                                                                                                                                                                                                 |

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| 04/18/2022 | <a href="#">401</a> | MINUTE ENTRY for Status Conference proceedings held before Judge Regina M. Rodriguez on 4/18/2022. ORDERED: The Defendants Oral Motion For Judgment as a Matter of Law Pursuant to Fed. R. Civ. P. 50(a) is DENIED, on claims as specified on the record. ORDERED: The Plaintiffs Oral Motion For Judgment as a Matter of Law Pursuant to Fed.R.Civ.P.50(a) is DENIED, on claims as specified on the record. ORDERED:National Taxs request to stay entry of final judgment until the Court rules on the outstanding Rule 50(a) motions is DENIED as MOOT. ORDERED: Titans request for the Judgment to itemize separately the damages for breach of contract and breach of the implied covenant of good faith and fair dealing is GRANTED. ORDERED: The Parties may file a motion requesting prejudgment interest after entry of Judgment. ORDERED:The parties shall submit an Amended Proposed Order of Final Judgment, consistent with the Courts orders as outlined in todays Status Conference hearing. The Amended Proposed Order of Final Judgment shall be submitted within 14 days of todays date. Court Reporter: Kevin Carlin. (babia) (Entered: 04/18/2022)                                                                                                                                                                                                                                                                                                                                                                                                 |
| 05/02/2022 | <a href="#">402</a> | NOTICE <i>[Proposed]</i> Order of Final Judgment by Plaintiff Titan Manufacturing Solutions, Inc. (Quiat, Laurin) (Entered: 05/02/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 05/05/2022 | <a href="#">403</a> | ORDER adopting in part <a href="#">402</a> the parties' proposed Order of Final Judgment, by Judge Regina M. Rodriguez on 5/5/2022. (ebuch) (Entered: 05/05/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 05/05/2022 | <a href="#">404</a> | ORDER OF FINAL JUDGMENT by Judge Regina M. Rodriguez on 5/5/2022. (ebuch) (Entered: 05/05/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 05/05/2022 | <a href="#">405</a> | FINAL JUDGMENT pursuant to <a href="#">394</a> Jury Verdict, <a href="#">403</a> Order Adopting in Part the Parties' Proposed Order of Final Judgment, and <a href="#">404</a> Order of Final Judgment, by Clerk and approved by Judge Regina M. Rodriguez on 5/5/2022. (ebuch) (Entered: 05/05/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 05/17/2022 | <a href="#">406</a> | Proposed Bill of Costs by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5)(Quiat, Laurin) (Entered: 05/17/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 05/19/2022 | <a href="#">407</a> | MOTION for Attorney Fees <i>and Costs</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Exhibit E) (Quiat, Laurin) (Entered: 05/19/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 05/19/2022 | <a href="#">408</a> | Proposed Bill of Costs by Counter Claimants National Cost, Inc., National Cost, Inc., Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3)(Shoaei, Maral) (Entered: 05/19/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 05/19/2022 | <a href="#">409</a> | NOTICE by Clerk re <a href="#">408</a> Proposed Bill of Costs, <a href="#">406</a> Proposed Bill of Costs. Since two Proposed Bills of Costs have been filed, the Clerk will hear both simultaneously [see p. 15 of the Guide, last bullet point]; the hearing for this matter will be held on June 7, 2022 at 9:00 a.m. MST. The hearing will be held IN PERSON - the parties are directed to have counsel asserting the Proposed Bill of Costs and opposing counsel presenting objections be physically present for the hearing. Co-counsel can appear by telephone. The hearing will be held in Courtroom C401 (4th floor) of the Byron Rogers U.S. Courthouse, 1929 Stout Street, Denver [NOT the Arraj Courthouse]. The Clerk reminds the parties that a Statement of Conferral must be filed no later than the day before the hearing in order to confirm the attempts to reach a settlement on either some or all of the requested costs, per local rule LCivR 54.1, and to confirm the parties have utilized the Clerk's Guide to Bills of Cost Hearings (see attached) in their discussions. Defendant/Counterclaimants National Cost, Inc. ARE ALSO DIRECTED TO FILE AN AMENDED PROPOSED BILL OF COSTS - the Amended Bill must contain an Itemization Chart that follows the directions contained in the Guide to Bills of Costs hearings, attached. Specifically, please give the specific reason as to why the cost should be awarded in each line item of the Itemization chart. See p. 17 of the attached Guide. Finally, the Clerk strongly encourages |

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|            |                     | the parties to reach an agreement as to individual costs items - or preferably - a global settlement, in light of the Rule One directive that the court and PARTIES work to secure the just, speedy, and inexpensive determination of every action and proceeding. (ashee) (Entered: 05/19/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 05/23/2022 | <a href="#">410</a> | Proposed Bill of Costs <i>Amended</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso, Counter Claimants National Cost, Inc., National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C)(Tamkin, Gregory) (Entered: 05/23/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 05/24/2022 | <a href="#">411</a> | Proposed Bill of Costs <i>Revised</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Revised Summary of Costs, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5)(Quiat, Laurin) (Entered: 05/24/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 05/27/2022 | <a href="#">412</a> | MOTION to Alter Judgment re <a href="#">405</a> Judgment to <i>Include Pre-Judgment Interest</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 05/27/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/01/2022 | <a href="#">413</a> | TRANSCRIPT of Trial to Jury - Day One held on 3/14/2022 before Judge Rodriguez. Pages: 1-91.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind, ) (Entered: 06/01/2022)      |
| 06/01/2022 | <a href="#">414</a> | TRANSCRIPT of Trial to Jury - Day Two held on 3/15/2022 before Judge Rodriguez. Pages: 92-345.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind, ) (Entered: 06/01/2022)    |
| 06/01/2022 | <a href="#">415</a> | TRANSCRIPT of Trial to Jury - Day Three held on 3/16/2022 before Judge Rodriguez. Pages: 346-515.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind, ) (Entered: 06/01/2022) |
| 06/01/2022 | <a href="#">416</a> | TRANSCRIPT of Trial to Jury - Day Four held on 3/17/2022 before Judge Rodriguez. Pages: 516-767.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |



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|            |                     | <p><b>court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b></p> <p>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind, ) (Entered: 06/01/2022)</p>                                                                                                                                                                                                                                                                                                                                                              |
| 06/01/2022 | <a href="#">417</a> | <p>TRANSCRIPT of Trial to Jury - Day Five held on 3/18/2022 before Judge Rodriguez. Pages: 768-1038.</p> <p><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b></p> <p>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind, ) (Entered: 06/01/2022)</p> |
| 06/01/2022 | <a href="#">418</a> | <p>TRANSCRIPT of Trial to Jury - Day Six held on 3/2 before Judge Rodriguez. Pages: 1039-1239.</p> <p><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b></p> <p>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (tlind, ) (Entered: 06/01/2022)</p>       |
| 06/02/2022 | <a href="#">419</a> | <p>MOTION to Alter Judgment <i>OR</i>, MOTION for New Trial by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso, Counter Claimants National Cost, Inc., National Cost, Inc.. (Tamkin, Gregory) (Entered: 06/02/2022)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/02/2022 | <a href="#">420</a> | <p>Renewed MOTION to Alter Judgment re <a href="#">405</a> Judgment by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso, Counter Claimants National Cost, Inc., National Cost, Inc.. (Tamkin, Gregory) (Entered: 06/02/2022)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 06/06/2022 | <a href="#">421</a> | <p>STIPULATION <i>Regarding the Parties Respective Bill of Costs</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 06/06/2022)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 06/06/2022 | <a href="#">422</a> | <p>Costs Taxed by Clerk in the amount of \$16,130.44 against Defendant National Cost Inc. and in favor of Plaintiff Titan Manufacturing Solutions, Inc. Costs awarded to Plaintiff pursuant to the parties' Stipulation (Docket No. 421). The hearing set for June 7, 2022 is accordingly VACATED. (ashee) (Entered: 06/06/2022)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/06/2022 | <a href="#">423</a> | <p>Costs Taxed by Clerk in the amount of \$11,874.12 against Plaintiff Titan Manufacturing Solutions, Inc. and in Favor of Defendant National Cost, Inc. Costs awarded to Defendant pursuant to the parties' Stipulation (Docket No. 421). The hearing set for June 7, 2022 is accordingly VACATED. (ashee) (Entered: 06/06/2022)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 06/07/2022 | <a href="#">424</a> | <p>Unopposed MOTION for Extension of Time to File Response/Reply as to <a href="#">407</a> MOTION for Attorney Fees <i>and Costs</i>, <a href="#">412</a> MOTION to Alter Judgment re <a href="#">405</a> Judgment <i>to Include Pre-Judgment Interest</i> , MOTION for Attorney Fees <i>and Costs</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso, Counter Claimants National Cost, Inc., National Cost, Inc.. (Shoaei, Maral) (Entered: 06/07/2022)</p>                                                                                                                                                                                                                                                                                                                                                                                                                            |

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| 06/07/2022 | 425                 | ORDER granting <a href="#">424</a> Unopposed MOTION for Extension of Time to File Response as to <a href="#">407</a> MOTION for Attorney Fees <i>and Costs</i> , <a href="#">412</a> MOTION to Alter Judgment re <a href="#">405</a> Judgment <i>to Include Pre-Judgment Interest</i> . National Cost, Inc. is GRANTED an extension of time, to and including 6/30/2022, to file a responsive pleading to both <a href="#">407</a> Motion for Attorney Fees and Costs and <a href="#">412</a> Motion to Amend Final Judgment to Include Pre-Judgment Interest. SO ORDERED by Judge Regina M. Rodriguez on 6/7/2022. Text Only Entry(rmrja) (Entered: 06/07/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/09/2022 | <a href="#">426</a> | MOTION to Stay re <a href="#">407</a> MOTION for Attorney Fees <i>and Costs</i> , <a href="#">412</a> MOTION to Alter Judgment re <a href="#">405</a> Judgment <i>to Include Pre-Judgment Interest</i> by Defendants Lee Ferry, National Cost, Inc., Stephanie Reynoso, Counter Claimants National Cost, Inc., National Cost, Inc.. (Tamkin, Gregory) (Entered: 06/09/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 06/14/2022 | 427                 | ORDER re <a href="#">426</a> National Cost Inc.'s Motion to Stay Resolution of Applications for Attorneys' Fees and Costs and for Prejudgment Interest. National Cost, Inc. has moved to stay resolution of Titan Manufacturing Solutions, Inc.'s <a href="#">407</a> Motion for Attorney Fees and Costs and <a href="#">412</a> Motion to Amend Final Judgment to Include Pre-Judgment Interest. National Cost's <a href="#">426</a> Motion indicates that Titan opposes the request for a stay. Therefore, the Court anticipates that Titan will file a Response to National Cost's <a href="#">426</a> Motion to Stay. Given that, the Court GRANTS a temporary stay, on the resolution of Titan's <a href="#">407</a> Motion for Attorney Fees and Costs and <a href="#">412</a> Motion to Amend Final Judgment to Include Pre-Judgment Interest, pending resolution of National Cost's <a href="#">426</a> Motion to Stay. Unless the Court grants National Cost's <a href="#">426</a> Motion to Stay, the stay on Titan's motions shall lift after resolution of the <a href="#">426</a> Motion to Stay. SO ORDERED by Judge Regina M. Rodriguez on 6/14/2022. Text Only Entry(rmrja) (Entered: 06/14/2022) |
| 06/20/2022 | <a href="#">428</a> | Unopposed MOTION for Extension of Time to File Response/Reply as to <a href="#">420</a> Renewed MOTION to Alter Judgment re <a href="#">405</a> Judgment , <a href="#">419</a> MOTION to Alter Judgment <i>OR</i> MOTION for New Trial by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Quiat, Laurin) (Entered: 06/20/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 06/21/2022 | 429                 | ORDER granting <a href="#">428</a> Unopposed MOTION for Extension of Time to File Response as to <a href="#">420</a> Renewed MOTION to Alter Judgment re <a href="#">405</a> Judgment , <a href="#">419</a> MOTION to Alter Judgment <i>OR</i> MOTION for New Trial. Titan is GRANTED an extension of time, to and including 7/8/2022, to respond to Defendant National Cost, Inc.'s <a href="#">420</a> Renewed MOTION to Alter Judgment re <a href="#">405</a> Judgment , and <a href="#">419</a> MOTION to Alter Judgment <i>OR</i> MOTION for New Trial. SO ORDERED by Judge Regina M. Rodriguez on 6/21/2022. Text Only Entry(rmrja) (Entered: 06/21/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 06/30/2022 | <a href="#">430</a> | BRIEF in Opposition to <a href="#">426</a> MOTION to Stay re <a href="#">407</a> MOTION for Attorney Fees <i>and Costs</i> , <a href="#">412</a> MOTION to Alter Judgment re <a href="#">405</a> Judgment <i>to Include Pre-Judgment Interest</i> filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 06/30/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 07/08/2022 | <a href="#">431</a> | BRIEF in Opposition to <a href="#">420</a> Renewed MOTION to Alter Judgment re <a href="#">405</a> Judgment filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 07/08/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/08/2022 | <a href="#">432</a> | BRIEF in Opposition to <a href="#">419</a> MOTION to Alter Judgment <i>OR</i> MOTION for New Trial filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 07/08/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 07/14/2022 | <a href="#">433</a> | BRIEF in Support of <a href="#">426</a> MOTION to Stay re <a href="#">407</a> MOTION for Attorney Fees <i>and Costs</i> , <a href="#">412</a> MOTION to Alter Judgment re <a href="#">405</a> Judgment <i>to Include Pre-Judgment Interest</i> filed by Counter Claimants National Cost, Inc., National Cost, Inc., Defendant National Cost, Inc.. (Shoei, Maral) (Entered: 07/14/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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| 07/22/2022 | <a href="#">434</a> | BRIEF in Support of <a href="#">420</a> Renewed MOTION to Alter Judgment re <a href="#">405</a> Judgment filed by Counter Claimants National Cost, Inc., National Cost, Inc., Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 07/22/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 07/22/2022 | <a href="#">435</a> | BRIEF in Support of <a href="#">419</a> MOTION to Alter Judgment <i>OR</i> MOTION for New Trial filed by Counter Claimants National Cost, Inc., National Cost, Inc., Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 07/22/2022)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/07/2023 | <a href="#">436</a> | ORDER. The Court DENIES National Cost, Inc.'s Motion for a New Trial Under Fed. R. Civ. P. 59(a) and to Alter or Amend the Judgment under Fed. R. Civ. P. 59(e), ECF No. <a href="#">419</a> . The Court DENIES IN PART National Cost Inc.'s Renewed Red. R. Civ. P. 50(b) Motion for Judgment as a Matter of Law, ECF No. <a href="#">420</a> , as to all claims except for Titan's claim for breach of the duty of good faith and fair dealing. As to that claim, the Court GRANTS IN PART National Tax's renewed motion for judgment as a matter of law and ORDERS that judgment shall enter in National Tax's favor on that claim. The parties are DIRECTED to file an amended Proposed Order of Judgment consistent with this Order within seven (7) days of the date of this order. ORDERED by Judge Regina M. Rodriguez on 3/7/2023.(angar, ) (Entered: 03/07/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 03/07/2023 | 437                 | ORDER. Given the Court's <a href="#">436</a> Order granting in part National Cost Inc.'s Renewed Fed. R. Civ. P. 50(b) Motion for Judgment as a Matter of Law, ECF No. 420, as to Titan's claim for breach of the implied duty of good faith and fair dealing, the total jury award that Titan has used to calculate pre-judgment interest in <a href="#">412</a> Plaintiff's Rule 59(e) Motion to Amend Final Judgment to Include Pre-Judgment Interest is no longer accurate. As such, the Court DENIES WITHOUT PREJUDICE AND WITH LEAVE TO RE-FILE Titan's Rule 59(e) Motion, ECF No. <a href="#">412</a> . In addition, <a href="#">407</a> Plaintiff's Motion for Attorney Fees and Costs is also DENIED WITHOUT PREJUDICE AND WITH LEAVE TO RE-FILE, given the entry of the Court's <a href="#">436</a> Order. Finally, the Court DENIES AS MOOT National Cost, Inc.'s Motion to Stay Resolution of Applications for Attorneys' Fees and Costs and for Prejudgment Interest, ECF No. <a href="#">426</a> . If Titan intends to re-file its motions for pre-judgment interest and for attorney fees, it shall make any necessary amendments to those motions, given the Court's <a href="#">436</a> Order, and it shall re-file the motions for pre-judgment interest and for attorney fees within seven days of the date of this Order--that is, on or before March 14, 2023. The Court has directed the parties to file an amended Proposed Order of Judgment consistent with its <a href="#">436</a> Order within seven days--that is, on or before March 14, 2023. ECF No. <a href="#">436</a> at 31. However, if Titan re-files its motion for pre-judgment interest, the deadline for the parties to file the amended Proposed Order of Judgment is STAYED pending the Court's resolution of Titan's motion for pre-judgment interest. If Titan re-files its motions for attorney fees and pre-judgment interest and those re-filed motions are opposed, the parties shall follow the briefing schedule set forth in D.C.COLO.LCivR 7.1(d). SO ORDERED by Judge Regina M. Rodriguez on 3/7/2023. Text Only Entry(rmrja) (Entered: 03/07/2023) |
| 03/14/2023 | <a href="#">438</a> | Amended MOTION to Alter Judgment re 437 Order on Motion for Attorney Fees,,,,,,,,, Order on Motion to Alter Judgment,,,,,,,,, <a href="#">405</a> Judgment to Include Pre-judgment Interest by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 03/14/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 03/14/2023 | <a href="#">439</a> | Amended MOTION for Attorney Fees by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D, # <a href="#">5</a> Supplemental Exhibit E, # <a href="#">6</a> Exhibit E)(Quiat, Laurin) (Entered: 03/14/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 04/04/2023 | <a href="#">440</a> | BRIEF in Opposition to <a href="#">438</a> Amended MOTION to Alter Judgment re 437 Order on Motion for Attorney Fees, Order on Motion to Alter Judgment, <a href="#">405</a> Judgment to Include Pre-judgment Interest filed by Defendant National Cost, Inc.. (Tamkin, Gregory) (Entered: 04/04/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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| 04/04/2023 | <a href="#">441</a> | BRIEF in Opposition to <a href="#">439</a> Amended MOTION for Attorney Fees filed by Defendant National Cost, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - 2017 Economic Survey)(Tamkin, Gregory) (Entered: 04/04/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 04/14/2023 | <a href="#">442</a> | Unopposed MOTION for Extension of Time to File Response/Reply as to <a href="#">439</a> Amended MOTION for Attorney Fees , <a href="#">438</a> Amended MOTION to Alter Judgment re 437 Order on Motion for Attorney Fees,,,,,,, Order on Motion to Alter Judgment,,,,,, <a href="#">405</a> Judgment to <i>Include Pre-judgment Interest</i> by Plaintiff Titan Manufacturing Solutions, Inc.. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Bruner, Jacob) (Entered: 04/14/2023)                                                                                                                                                                                                                                                              |
| 04/14/2023 | 443                 | ORDER granting <a href="#">442</a> Unopposed MOTION for Extension of Time to File Reply Briefs In Support of Amended Motion to Alter Judgement and Amended Motion for Attorney Fees. Plaintiff is granted an extension of 7 days, to and including April 25, 2023, to submit its Reply Brief in support of its <a href="#">438</a> Amended Motion to Alter Judgment and <a href="#">439</a> Amended Motion for Attorney Fees. SO ORDERED by Judge Regina M. Rodriguez on 4/14/2023. Text Only Entry(rmrja) (Entered: 04/14/2023)                                                                                                                                                                                                                              |
| 04/25/2023 | <a href="#">444</a> | REPLY to Response to <a href="#">438</a> Amended MOTION to Alter Judgment re 437 Order on Motion for Attorney Fees, Order on Motion to Alter Judgment, <a href="#">405</a> Judgment to <i>Include Pre-judgment Interest</i> filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Bruner, Jacob) (Entered: 04/25/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 04/25/2023 | <a href="#">445</a> | REPLY to Response to <a href="#">439</a> Amended MOTION for Attorney Fees filed by Plaintiff Titan Manufacturing Solutions, Inc.. (Bruner, Jacob) (Entered: 04/25/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 07/19/2023 | <a href="#">446</a> | ORDER. Plaintiff's Amended Rule 59(e) Motion to Alter Final Judgment to Include Pre-Judgment Interest, ECF No. <a href="#">438</a> , is DENIED. The parties shall confer and file a Proposed Amended Order of Final Judgment consistent with this Order and the Court's March 7, 2023 Order, ECF No. <a href="#">436</a> , within seven days of the date of this Order. Plaintiff's Amended Motion for Attorneys' Fees, ECF No. <a href="#">439</a> , is GRANTED, and the Court finds that Titan is entitled to its requested award of \$64,668.69 in Akerman attorney fees; \$802,643.09 in BakerHostetler attorney fees; and \$13,197.41 in costs, totaling \$880,509.19. ORDERED by Judge Regina M. Rodriguez on 7/19/2023.(angar, ) (Entered: 07/20/2023) |
| 07/26/2023 | <a href="#">447</a> | NOTICE re <a href="#">446</a> Order on Motion to Alter Judgment,,, Order on Motion for Attorney Fees,, <i>Proposed Amended Order of Final Judgment</i> by Plaintiff Titan Manufacturing Solutions, Inc. (Quiat, Laurin) (Entered: 07/26/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 09/22/2023 | <a href="#">448</a> | AMENDED FINAL JUDGMENT by Judge Regina M. Rodriguez on 9/22/23. (jdyne) (Entered: 09/25/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 10/20/2023 | <a href="#">449</a> | NOTICE OF APPEAL as to <a href="#">448</a> Judgment by Counter Claimants National Cost, Inc., National Cost, Inc., Defendant National Cost, Inc. (Filing fee \$ 505, Receipt Number ACODC-9355434) (Tamkin, Gregory) (Entered: 10/20/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 10/23/2023 | <a href="#">450</a> | LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the <a href="#">449</a> Notice of Appeal filed by National Cost, Inc. to the U.S. Court of Appeals. ( Retained Counsel, Fee paid,) (Attachments: # <a href="#">1</a> Preliminary Record and Docket Sheet)(angar, ) (Entered: 10/23/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 10/23/2023 | <a href="#">451</a> | USCA Case Number 23-1333 for <a href="#">449</a> Notice of Appeal filed by National Cost, Inc.. (angar, ) (Entered: 10/23/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 11/06/2023 | <a href="#">452</a> | TRANSCRIPT ORDER FORM re <a href="#">449</a> Notice of Appeal by Defendant National Cost, Inc. (Tamkin, Gregory) (Entered: 11/06/2023)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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| 11/15/2023 | <a href="#">453</a> | LETTER TO USCA and all counsel certifying the record is complete as to <a href="#">449</a> Notice of Appeal filed by National Cost, Inc.. A transcript order form was filed stating that the necessary transcript is already on file. ( Appeal No. 23-1333) Text Only Entry (angar, ) (Entered: 11/15/2023) |
| 01/30/2024 | <a href="#">454</a> | USCA Order as to <a href="#">449</a> Notice of Appeal filed by National Cost, Inc. : (USCA Case No. 23-1333) (This document is not the Mandate). (jrobe, ) (Entered: 01/31/2024)                                                                                                                            |
| 01/30/2024 | <a href="#">455</a> | MANDATE of USCA as to <a href="#">454</a> USCA Order/Opinion/Judgment : (USCA Case No. 23-1333) With the issuance of this letter, jurisdiction is transferred back to the lower court. (jrobe, ) (Entered: 01/31/2024)                                                                                      |
| 02/02/2024 | <a href="#">456</a> | NOTICE of Acknowledgement and Satisfaction of Judgement by Defendant National Cost, Inc. (Tamkin, Gregory) (Entered: 02/02/2024)                                                                                                                                                                            |
| 02/02/2024 | <a href="#">457</a> | SATISFACTION OF JUDGMENT of Monetary Portion of Judgment by Plaintiff Titan Manufacturing Solutions, Inc.. (Quiat, Laurin) (Entered: 02/02/2024)                                                                                                                                                            |

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